PARADIP PORT AUTHORITY

MARINE DEPARTMENT

******

E-TENDER DOCUMENT FOR

Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles & Docks of Paradip Port Authority
for a period of 03 (three) years i.e for the years 2027-28 to 2029-30.

Office of the Deputy Conservator
Marine Department,
Paradip Port Authority,
Administrative Building, First Floor (Rear Wing),
Post: Paradip – 754 142, Dist.: Jagatsinghpur (Odisha).
Contact No. +91 77890-33783
Email: dc@paradipport.gov.in

CONTENTS OF THE TENDER DOCUMENT

E-TENDER CALL NOTICE (E-TCN)

SECTION – I **INSTRUCTION TO BIDDERS (ITB)**

SECTION – II **GENERAL CONDITIONS OF CONTRACT (GCC)**

SECTION – III **SCOPE OF WORK & TECHNICAL INFORMATION**

SECTION – IV **SPECIAL CONDITIONS OF CONTRACT (SCC)**

APPENDIX – I **METEOROLOGICAL PARAMETERS**

APPENDIX – II **FORM OF TENDER**

APPENDIX – III **TECHNO-COMMERCIAL INFORMATION**

APPENDIX – IV **ELIGIBILITY INFORMATION**

APPENDIX –V **TECHNICAL SPECIFICATION OF DREDGER OFFERED FOR DREDGING**

APPENDIX –VI **e-BANK GUARANTEE FORMAT FOR EMD.**

APPENDIX –VI(A) **FORMAT OF INSURANCE SURETY BOND/FIXED DEPOSIT FOR EMD.**

APPENDIX –VII **FORMAT OF e-BANK GUARANTEE FOR PERFORMANCE SECURITY DEPOSIT.**

APPENDIX –VII(A) **FORMAT OF INSURANCE SURETY BOND/FIXED DEPOSIT FOR PERFORMANCE SECURITY DEPOSIT.**

APPENDIX –VIII **FORMAT OF e-BANK GUARANTEE FOR EXTRA ADDITIONAL SECURITY DEPOSIT.**

APPENDIX –VIII(A) **FORMAT OF INSURANCE SURETY BOND/FIXED DEPOSIT FOR EXTRA ADDITIONAL SECURITY DEPOSIT.**

APPENDIX-IX **FORMAT FOR REFUND OF EMD**

APPENDIX-X **STANDARD FORMAT FOR JOINT VENTURE/CONSORTIUM AGREEMENT.**

APPENDIX-XI **FORMAT OF TDS DETAILS FOR THE SIMILAR WORKS**

APPENDIX-XII **FORMAT FOR AGREEMENT**

APPENDIX-XIII **LAYOUT OF DREDGING AREAS & DUMPING GROUND.**

APPENDIX – XIV **INTEGRITY PACT.**

PARADIP PORT AUTHORITY
MARINE DEPARTMENT

No: MD/SHS/TECH-16/2026/1225 Dated, the 26th Sept. 2026.

e-Tender Call Notice(e-TCN)

E-Tenders are invited in Single Stage **03(three)** Cover Systems (Tender Fee & EMD Bid, Technical Bid and Price Bid) on behalf of the Board of Paradip Port Authority from Indian Registered reputed and experienced Dredging Companies / Firms (having experience in execution of similar nature of works) for the work mentioned below through on-line bidding on the website **https://eprocure.gov.in/eprocure/app** having Digital Signature Certificate (DSC) issued from any agency authorized by Controller of Certifying Authority (CCA), Govt. of India and which can be traced up to the chain of trust to the Root Certificate of CCA.

1. The bidders who want to participate:

i. Should have GST Registration Certificate (Copy to be submitted on-line)

ii. Should have Income Tax PAN. (copy to be submitted online)

2. The bidders may submit bids for the following works.

Description of work	Estimated Cost of work put to Tender (in Rs.)	Earnest Money Deposit(EMD)	Tender fee (in Rs.)	Period of Contract
1	2	3	4	5
Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles & Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually.	**Rs.435,41,11,671/- excluding GST.**	Rs.10,27,57,035/- incl. of GST@18% (Refundable)	Rs.11,800/- inclusive of 18% GST (Non-Refundable)	03(three) years i.e. from 2027-28 to 2029-30.

N.B.: The **exemption** towards submission of **EMD and tender Fee** shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MoMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum) on submission (Uploading) of certificate **in the first cover** at the time of bidding**.** The bids of firms, those are found neither submitted Tender Fee and EMD nor Exemption Certificate **in the first cover**, shall be **rejected.**

3. **TIME SCHEDULE OF TENDER** :

Sl. No.	Particulars	Date	Time
1	Tender e-Publication date	26.09.2026	17:00 Hrs.
2	(a) Document download start date	26.09.2026	17:30 Hrs
	(b) Document download end date	22.10.2026	17:00 Hrs.
	(c) Pre-bid query start date	26.09.2026	17:30 Hrs.
	(d) Pre-bid query end date	05.10.2026	17:30 Hrs.
	(e)Pre-bid meeting date	06.10.2026	11:00 Hrs
	(f)Pre-bid minutes upload	09.10.2026	17:00Hrs
3	Bid Submission end date	22.10.2026	17:00 Hrs.
4	Tender Opening Date (Technical Bid/Pre-qualification Bid)	23.10.2026	11:00 Hrs.

4. CONTRACT DATA

(A) GENERAL INFORMATIONS :

Sl. No.	Item	Details
1	Name of the work	**"Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles & Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually."**
2	Employer	Board of Paradip Port Authority
3	Employer's Representative	Deputy Conservator, Paradip Port Authority
4	Controlling officer	Deputy Conservator, Paradip Port Authority
5	Accepting Authority	Board of Paradip Port Authority
6	Executing Authority	Sr. Hydrographic Surveyor, PPA
7	Estimated Cost put to Tender	**Rs.435,41,11,671/- excluding GST.**

(B) BID INFORMATION :

8	Contract period	03(three) years i.e. from the years 2027-28 to 2029-30.
9	Last Date & Time of submission of Bid	Date : **22.10.2026** Time: 17:00 Hrs.
10	Date of opening	Date : **23.10.2026** Time:11.00 Hrs.
11	**Tender Fee**	
	Amount	Rs.11,800/- inclusive of 18% GST **(Non-refundable)**
	To pay in the form of on-line through National Electronic Fund Transfer (NEFT)/Real Time Gross Settlement (RTGS) only in favour of PARADIP PORT AUTHORITY,	Account No.0254104000169615 In favour of Paradip Port Authority Type of Account – SAVINGS Branch: IDBI Bank Ltd. IFSC: IBKL0000254

		The bidder must upload self-signed acknowledgement copy for deposits of cost of tender document along with other documents. OR The **exemption** towards submission of **<u>tender Fee</u>** shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation)with valid registration certificate / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MoMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum) on submission (Uploading) of Regn. Certificate at the time of bidding in the First Cover. **The bids of firms, those are found neither submitted Tender Fee nor Exemption Certificate in the <u>first cover</u>, shall be rejected.**
12.	**Earnest Money Deposit**	Rs.10,27,57,035/- **incl. of GST@18%** **(Refundable)**
	To pay in the form of on-line through National Electronic Fund Transfer (NEFT)/Real Time Gross Settlement (RTGS) only in favour of PARADIP PORT AUTHORITY,	Account No.0254104000169615 In favour of Paradip Port Authority Type of Account – SAVINGS Branch: IDBI Bank Ltd. IFSC: IBKL0000254 The bidder must upload self-signed acknowledgement copy for deposits of EMD along with other documents. OR The bidder may submit the EMD in shape of Demand draft / Banker's cheque / e-Bank Guarantee **(e-BG)** from any of the commercial / scheduled Banks having validity period of 45 (Forty-Five) days beyond the final bid validity period i.e. 135 days from the last date of submission of bid as per the attached format at **<u>APPENDIX–VI</u>**. **Also the Acknowledgement receipt of the original e-BG for the EMD shall be uploaded in the first cover, otherwise the bid shall be rejected.** **OR** The bidder shall upload the scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed

		deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma as per **APPENDIX-VI(A)** of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven days) of opening of the technical bid, failing which the bid shall be rejected.** **OR** The **exemption** towards submission of **EMD** shall be considered for the bidders those who have registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / URC (Udyam Registration Certificate) submission (uploading) of certificate at the time of bidding. **The firms who have not submitted required EMD or exemption certificate in the first cover shall be treated as non-responsive / invalid and shall be rejected.**
13.	Bid validity period	90 days
14.	Currency of Contract	Indian Rupee
15.	Language of contract	English

5. Bidders with the following eligibility criteria only may participate:

At the time of submission of Bids, the tenderer should meet any of the following condition for deploying dredger for Maintenance Dredging at Paradip Port :

5.1 A) *If the* Dredger *is in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid).

i) The Dredger to be offered for the contract should meet the Technical Specification similar to specification mentioned in the Scope of Work. (Proof to be submitted as per format at **APPENDIX – V).**

ii) To submit the Registration Certificate & other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, Insurance certificate etc (Copy to be submitted) for the proposed dredger(s).

B) *If the* Dredger *is not in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid).

i) To submit Legally binding / enforceable MoU with the owner of the dredger(s) on a Rs.100/- Non-judicial stamp paper for chartering/ hiring for deployment at Paradip Port against the referred above tender along with Technical Specifications of the dredger(s) being offered which shall be meeting to the Technical Specification similar to specification mentioned in the Scope of Work (Proof to be submitted as per format at **APPENDIX – V.**

ii) To submit the Registration Certificate & other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, Insurance certificate etc (Copy to be submitted) for the proposed dredger(s).

N.B.:(a) The firm must have been registered in India under Company Act. (A copy of Registration Certificate as per Companies Act 1956 and as amended is to be submitted as proof.)

(b) The offered vessel must have been classed with any one of the IACS members (Copy of Classification Certificate to be submitted along with Technical / Pre-qualification Bid).

5.2 Integrity Pact (IP):

The firm must download the Integrity Pact (IP) at **APPENDIX – XIV** and upload the same duly signed by the Authorised Signatory along with technical bid. **Any bid not accompanied by Integrity Pact duly signed by the bidder shall be considered as non-responsive bid and shall be rejected straightway.**

In case of a joint venture, all the partners of the joint venture should sign the Integrity Pact. In case of sub-contracting, the principal contractor shall be solely responsible for the adherence to the provisions of IP by the sub-contractor(s).

5.3 Financial Criteria and Similar Work experiences:

5.3.1 The tenderer should have annual average turnover of at least **Rs.43,54,11,167/- (Rupees Forty-three Crores Fifty-four Lakhs Eleven-thousand One-hundred & sixty-seven) only excluding GST** per annum during last 03 years, i.e. 2023-24, 2024-25 & 2025-26 as per audited report certified by the chartered accountant firm (Proof to be provided).

5.3.2 The bidder must have successfully carried out Maintenance dredging works/ Capital Dredging works of Approach channel/ Entrance Channel/Sea Shipping Channel/Harbour/River etc. during last **07(seven)** years. Scanned copy of Original Work Orders and Original Work experience certificate with work executed value excluding GST of having successful completion of similar type of works during last **07 (seven) years** ending on 31st August 2026 should be either of the followings:

(a) Three similar completed works each costing not less than **Rs.58,05,48,223/- (Rupees Fifty-eight crore five lakhs forty-eight thousand two hundred &twenty-three)only excluding GST.**

(OR)

(b) Two similar completed works each costing not less than **Rs.72,56,85,279/-(Rupees Seventy-two crore Fifty-six lakhs Eighty-five thousand two hundred & seventy-nine)only excluding GST.**

(OR)

(c) One similar completed work costing not less than **Rs.116,10,96,446/-(Rupees One hundred & sixteen Crores Ten lakhs ninety-six thousand four hundred & forty-six)only excluding GST.**

Note:

(i) **"Similar works" means** Maintenance Dredging works/ Capital Dredging works of Approach channel / Entrance Channel/ Sea Shipping Channel /Harbour/River etc. (Copies of Work Orders/Contract Agreements and corresponding Work completion certificates or Performance certificates with work executed value to be submitted as proof).

(ii) Scanned copy of Original TDS certificate must be furnished for the specified works submitted against similar work experience duly **certified by Chartered Accountant firm** supported by TDS Traces as per the enclosed format at **APPENDIX – XI** if the work experience submitted is issued by any private organisation.

(iii) If any firm is having running contract but partially completed period is meeting the above amount of eligibility criteria as on Dtd. 31st August 2026, then the firm can also participate in the tender.

(iv) In case, if any firm submits the similar work experience from foreign firm, they must submit the TDS Traces as per the enclosed format at **APPENDIX – XI** / Certificate or exemption certificate from IT Department, Govt. of India.

5.4 Joint Venture (JV):

The Indian registered firms are allowed to participate in the tender as joint venture subject to fulfilling the following terms & conditions:

5.4.1 In case the tender is submitted in a Joint Venture (JV), each member of the JV / consortium must satisfy at least the criteria indicated at (5.1), (5.2) & (5.3) above. Besides, the Joint Venture should be a registered company with separate entity and all joint venture agreements, technical collaboration agreement shall ensure that all parties of the joint venture are individually and jointly responsible for the tender conditions and such agreements are legally valid. Moreover, the Port Authority will be scrutinizing the following criteria for joint ventures/technical collaboration agreement submitted under this tender:

5.4.2 Joint Venture should be in the nature of legally acceptable agreements (As per **APPENDIX-X).** Such agreements should be notarized or regulated. Such joint venture agreement should contain explicitly the scope and responsibilities of all the partners in the joint venture in terms of financial and technical commitments/contribution. The JV should be severally and jointly responsible.

5.4.3 If the joint venture is formed in India, the agreement shall be entered into by the parties on a stamp paper.

5.4.4 All joint venture companies must be registered as per law of the relevant country.

5.4.5 The validity of the joint venture agreement entered upon on the award of Letter of Acceptance (LOA) by the Port should continue for entire period of contract as specified in the tender.

5.4.6 All such agreement shall be irrevocable for the above periods.

5.4.7 A copy of the agreement (on legal document) entered into by the joint venture partners shall be submitted with the tender as per the format given at **APPENDIX-X** and must be notarized.

5.4.8 Number of Joint Venture partners would be limited to three (including the lead partner) with at least 26% equity holding by each member in case of a Company. In case a Joint Venture is formed for the specific work only, each of the Joint Venture partner including the lead partner shall have work experience of minimum value not less than 26% for at least one single work of the estimated cost put to tender as indicated in TCN to become eligible to be a member of the Joint Venture. One of the partners shall be nominated as Lead Partner for signing Agreement with Paradip Port Authority and shall be authorized to incur liabilities and receive instructions for and on behalf of any and all the partners of the joint venture. This authorization shall be evidenced by submitting registered power of attorney signed by all the partners.

5.4.9 All partners of the joint venture shall be liable jointly and severally during the bidding process and for the execution of the contract in accordance with the provisions of contract and a statement to this effect shall be included in the authorization as above. The bid shall be signed so as to legally bind all the partners jointly and severally.

5.5.0 **Joint ventures must comply with the following requirements:**

(a) The joint venture must satisfy collectively the eligibility criteria as described in this section. For this purpose, the following information of each member of the joint venture may be submitted which will be added together to assess the collective eligibility criteria:

(i) Average Annual Turnover

(ii) Specific work Experience

(iii) Capacity of key Personnel

(iv) Ability to own / lease relevant equipment

(b) Each JV Partner including the lead partner shall meet not less than 26% of the following criteria:

(i) Average Annual Turnover

(ii) Specific work Experience

5.5.1 All the partners together shall satisfy 100% of the criteria**.**

A copy of the joint venture agreement (JVA) specific to this work, if entered into by the partners shall be submitted along with the Bid. Alternatively, the Memorandum of Understanding (MoU) to execute a JVA in the event of successful bid shall be signed by all partners and submitted with the bid. In any case, it is mandatory that a JV agreement is entered into before the award of the work.

Pursuant to the foregoing, the Joint Venture Agreement shall include among other things, the joint venture objectives, the proposed management structure, the contribution of each partner in the joint venture, the commitment of the partners to joint venture and several liability for due performance, recourse / sanctions within the joint venture in the event of default or withdrawal of any partner and arrangements for providing the required indemnities.

(A) <u>Similar Work Experience for Joint Venture (JV) Firm:</u>

The partners of Joint Venture shall individually or jointly meet the similar work experience criteria and the relevant work experience documents shall be furnished. Each JV partner including the lead partner shall have work experience of minimum value not less than 26% for at least one single work of the estimated cost put to tender as indicated in TCN. The single work / two works / three works as indicated in the eligibility criteria shall not be spilt which means in case of a single work one JV partner should have executed the single work in full on his own as specified in Tender Call Notice and in case of two works / three works, if JV partners proposed to collectively meet the experience then they should have individually done each of the works in full on their own as per example given below.

Example:-

A joint venture is constituted by three firms namely A, B and C and the estimated Cost of the work put to tender is Rs.10,00,000/-. Then the eligibility criteria for meeting similar work experience shall be

(i) Single work of value 80% equal to Rs.8,00,000/-

(ii) Two works of value 50% each equal to Rs.5,00,000/-

(iii) Three works of value 40% each equal to Rs.4,00,000/-

JV may meet the similar work experience criteria either any one of the following categories.

(i) <u>For single work category of value Rs. 8,00,000/-</u>

Any one Joint Venture Partner should have executed the Single work of value Rs.8.00 lakh in full individually on his own.

(ii) <u>For two works category of value Rs.5,00,000/- each</u>.

Value of each work executed by JV Partner shall be Rs.5.00 lakh in full individually on his own.

(iii) <u>For three works category of value Rs.4,00,000/- each</u>

Value of each work executed by JV Partner shall be Rs.4.00 lakh in full individually on his own.

(B) <u>Financial Turnover:</u> The average annual turnover of each partner of the JV individually shall not be less than 26% of average annual turnover as indicated in the eligibility criteria in TCN / Tender Document. Turnover of individual partner of the JV will be added together for each financial year to meet eligibility criteria of the Average Annual Turn Over.

6. Bid documents consisting of e-Tender call Notice, Instruction to Bidders, General Conditions of Contract (GCC), Special Conditions of Contract (SCC) & Bill of Quantity (BOQ) in prescribed .xls format and the set of terms and conditions of contract and tender details can be seen in the website: https://eprocure.gov.in/eprocure/app.

7. Online Bidders must deposit the tender fee and EMD through National Electronic Fund Transfer (NEFT) / Real Time Gross Settlement (RTGS) with the account number mentioned at Sl.11 & 12 of BID INFORMATION. A self-signed copy of these acknowledgements should be uploaded by the Bidder while submitting the tender in respect of documents regarding EMD & Tender fee.

The EMD amount may be submitted in the form of E-BG as per the attached format at **APPENDIX – VI** using beneficiary details. The validity of E-BG for EMD shall be 135 days from the last date of submission of bids.

OR

The bidder shall upload the scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma at **APPENDIX – VI(A)** of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**

N.B: The exemption towards submission of **Tender fee & EMD** shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MoMSME (Ministry of Micro, Small and Medium Enterprises) / URC (Udyam Registration Certificate) for the specific goods or services on submission (uploading) of certificate at the time of bidding.

The Bidder should ensure that the transaction will be within stipulated bidding period for that tender. No previous dues of the bidder shall be adjusted towards the above transaction of Tender fee and EMD. The bidder shall not use the same transaction in more than one tender, otherwise their bids will be rejected.

The account from which the tender fee and EMD will be deposited should be in the name of Contractor / authorized person of the firm who have digitally signed the bid. Refund of EMD in respect of successful bidders will be made to that specific account of the bidder. A standard format for refund of EMD is enclosed at **APPENDIX-IX** in this bid for applying refund of EMD without visiting to the PPA office. Refund of EMD in respect of unsuccessful bidders will only be made to that account from which it was deposited by the Bidder.

8. The Bid documents will be available in the website: **26/09/2026 17:30 hrs. to 22/10/2026 17:00 hrs. for online bidding.**

9. The bidder must possess compatible Digital Signature Certificate (DSC) of Class – II or Class – III.

10. All Bids are to be submitted online on the Website https://eprocure.gov.in/eprocure/app. No Bid shall be accepted offline. The Bids shall be received **only "on line" on or before dt. 22/10/2026 17:00 Hours.**

11. After opening of the Technical Bid, the original documents as per requirement of the e-Tender Document will be verified by Paradip Port Authority (PPA). PPA may ask for the shortfall documents, if any, on the basis of recommendation of Tender Committee exclusively via e-procurement portal as per followings:

a)Any clarification or shortfall in technical documents shall be communicated exclusively through the e-procurement portal using the designated online functionality.
b)Submission of documents through manual correspondence, physical mode, or external email shall not be entertained under any circumstances.
c)Bidders shall comply within the system-generated timeline, failing which their bid shall be liable for rejection.

12. After evaluation of bid, all the bidders will get the information regarding their eligibility/pre-qualification on website. Thereafter, a system generated e-mail confirmation will be sent to all successful bidders. The bidders can check the same from the portal.

13. The Price-bid of the successful bidders (qualified in Technical-bid) will be decrypted and opened on-line, on the scheduled date and after the pre-scheduled time by the *Bid Openers* with their Digital Signature Certificate (DSC).The bidders will get the information regarding the status of their financial bid and ranking of bidders on website.

14. Other details can be seen in the bidding documents.

15. The authority will not be held responsible for any technical snag or network failure during on-line bidding. It is the bidder's responsibility to comply with the system requirement i.e. hardware, software and internet connectivity at bidder's premises to access the e-Tender website. Under any circumstances, PPA shall not be liable to the bidders for any direct/indirect loss or damages incurred by them arising out of incorrect use of the e-Tender system or internet connectivity failures.

16. A **Pre-bid** meeting will be held on **Dt. 06.10.2026 at 11:00 hours** in the Chamber of Deputy Conservator, PPA to discuss various Techno-commercial aspects of the tender as required by the bidders. Suitable amendments will be made to the tender clauses, as per the discussions in the pre-bid meeting.

17. If the documents as per E-tender Call Notice are not submitted along with the bid or shortfalls are noticed, then, if desired, with recommendation of Tender Committee, the Tender Inviting Authority may ask for shortfall documents which should be historical in nature and must be issued prior to the last date of submission of tender or clarification on the submitted technical bid. No new / supplementary documents are acceptable.

18. The authority reserves the right to reject any or all tenders without assigning any reasons thereof or incurring liability for damages or loss of expected profit and shall also not be bound to accept the lowest tender.

Deputy Conservator
Paradip Port Authority

Copy to:

1. **All HoDs except DC, PPA** for kind information.
2. **Chief Vigilance Officer, PPA** for kind information.
3. **Shri Ramesh Narain Misra, Ex-CMD,SJVN,** Flat No. 6026,Pocket 8,Sector B, Vasant Kunj,New Delhi-110070 Mobile No. 9858111243, **E-mail:** RNMISHRA1957@GMAIL.COM & MISRARAMESH@YAHOO.CO.IN, IEM **,Paradip Port Authority**.
4. **Shri Pramod Shripad Phalnikar, IPS (Retd.),** ' Sadbhav ', Plot No. 15, Rhythm 1, Nanded City Township, Sinhagad Road, Pune.Mob.: 9011943674,(Email: pramodphalnikar@gmail.com.), IEM for Paradip Port Authority.
5. **P.R.O, PPA** for information with a request to publish the said e-tender call notice in the Port Gazette on its next issue and the shortest version of e-TCN may be published in local / national newspapers (as per norms).
6. Office Order Guard file.

PARADIP PORT AUTHORITY
MARINE DEPARTMENT

No. MD/SHS/TECH-16/2026/1225 Date: 26/09/2026

e-Tender Call Notice (e- TCN)

Name of the Work : "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles & Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M³ annually.**"

Estimated cost put to tender : **Rs.435,41,11,671 excluding GST.**

Last date & time of submission of tender through on-line bidding **till 17:00 hours on Dt.22/10/2026.**

The technical bids shall be opened **at 11:00 hours on dt. 23/10/2026**.

For further details, please log on to the Website: https://eprocure.gov.in/eprocure/app.

Deputy Conservator
Paradip Port Authority

Copy to:

1. **All HoDs except DC, PPA** for kind information.
2. **Chief Vigilance Officer, PPA** for kind information.
3. **Shri Ramesh Narain Misra, Ex-CMD,SJVN,** Flat No. 6026,Pocket 8,Sector B, Vasant Kunj,New Delhi-110070 Mobile No. 9858111243, **E-mail: RNMISHRA1957@GMAIL.COM** & **MISRARAMESH@YAHOO.CO.IN, IEM , Paradip Port Authority**.
4. **Shri Pramod Shripad Phalnikar, IPS (Retd.),** ' Sadbhav ', Plot No. 15, Rhythm 1, Nanded City Township, Sinhagad Road, Pune.Mob.: 9011943674,(Email: pramodphalnikar@gmail.com.), IEM for Paradip Port Authority.
5. **P.R.O, PPA** for information with a request to publish the said e-tender call notice in the Port Gazette on its next issue and the shortest version of e-TCN may be published in local / national newspapers (as per norms).
6. Office Order Guard file.

INSTRUCTION TO BIDDERS

1. Online bids under single stage **03(three)** cover system [(1)Tender Fee & EMD Bid, (2)Technical bid and (3) Price Bid] is hereby invited on behalf of the Board of Paradip Port Authority from Indian registered experienced and reputed Dredging firms(having experience in execution of similar nature of works) for the work "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually**" through on-line bidding on the website **https://eprocure.gov.in/eprocure/app** having Digital Signature Certificate (DSC) of Class-II or Class-III issued from any agency authorized by Controller of Certifying Authority (CCA), Govt. of India and which can be traced up to the chain of trust to the Root Certificate of CCA. **No manual bids shall be accepted.**

2. This section of the bidding documents provides the information necessary for bidders to prepare online responsive bids, in accordance with the requirements of the Tender Inviting Authority. It also provides information on online bid submission, opening, evaluation and contract award.

3. **INSTRUCTIONS FOR ONLINE BID SUBMISSION**:
The bidders are required to submit soft copies of their bids electronically on the Central Public Procurement (CPP) Portal, using valid Digital Signature Certificates. The instructions given below are meant to assist the bidders in registering on the CPP Portal, prepare their bids in accordance with the requirements and submitting their bids online on the CPP Portal.

4. **REGISTRATION**:

(i) Bidders are required to enrol on the e-Procurement module of the Central Public Procurement Portal by using the "**Error! Hyperlink reference not valid.**" Option available on the home page. Enrolment on the CPP Portal is free of charge.

(ii) During enrolment / registration, the bidders should provide the correct/true information including valid email-id & mobile No. All the correspondence shall be made directly with the contractors/bidders through E-mail ID provided.

(iii) As part of the enrolment process, the bidders will be required to choose an unique username and assign a password for their accounts.

(iv) For e-tendering possession of valid Digital Signature Certificate (Class II or Class III Certificates with signing key usage) is mandatory which can be obtained from SIFY/TCS/n-Code/e-Mudra or any Certifying Authority recognized by CCA India on e-Token/ Smart Card.

(v) Upon enrolment on CPP Portal for e-tendering, the bidders shall register their valid Digital Signature Certificate with their profile.

(vi) Only one valid DSC should be registered by a bidder. Bidders are responsible to ensure that they do not lend their DSCs to others which may lead to misuse and should ensure safety of the same.

(vii) Bidders can then log into the site through the secured login by entering their user ID /password and the password of the DSC / e-Token.

Note : Those who have already been enrolled need not to go through these steps.

5. **PREPARATION OF BIDS**

(i) For preparation of bid, Bidders shall search the tender from published tender list available on site and download the complete tender document and should take into account corrigendum if any published before submitting their bids. After selecting the tender document, the same shall be moved to the 'My favourite' folder of bidders account from where bidder can view all the details of the tender document.

(ii) Bidder shall go through the tender document carefully to understand the documents required to be submitted as part of the bid. Bidder shall note the number of covers in which the bid documents have to be submitted, the number of documents – including the names and content of each of the document that need to be submitted. Any deviations from these may lead to rejection of the bid.

(iii) Any clarifications, if required, they have to go through the contact details given in the tender document.

(iv) Bidders should make ready in advance the bid documents to be submitted as indicated in the tender document/schedule in PDF/xls/rar/zip/dwf formats.

6. SUBMISSION OF BIDS

(i) Bidder should log into the site well in advance for bid submission so that he/ she can upload the bid in time i.e. on or before the bid submission end date and time.

(ii) Bidder should remit the Tender Fee and EMD through NEFT / RTGS as per the instructions specified in the e-Tender call Notice.

OR

The bidders may deposit the EMD/ Bid security in the form of E-bank guarantee (E-BG) from any of the commercial / scheduled Banks having validity period of forty-five days beyond the final bid validity period i.e. 135 days from the last date of submission of bid as per the format **APPENDIX – VI**.

OR

The bidder shall upload the scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma [at **APPENDIX – VI(A)**]of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**

N.B: The exemption towards submission of EMD and tender Fee shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi& Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum) on submission (uploading) of certificate in the first cover at the time of bidding.

(iii) While submitting the bids online, the bidder shall read the terms & conditions (of CPP portal) and accepts the same in order to proceed further to submit their bid.

(iv) Bidder shall digitally sign and upload the required bid documents one by one as indicated in the tender details according to specified cover.

(v) Bidders shall note that the very act of using DSC for downloading the tender document and uploading their offers is deemed to be a confirmation that they have read all sections and pages of the tender document without any exception and have understood the complete tender document and are clear about the requirements of the tender document.

(vi) Bidders shall download the Bill of quantity, in .xls format and save it without changing the name of the file. Bidder shall quote their rates in figures only in green background cells, thereafter save and upload the file in financial bid cover (Price bid) only. The bidders are cautioned that while uploading of financial bid, **Macros** must be enabled to see the word representation of figures.

(vii) Bidders shall submit their bids through online e-tendering system to the Tender Inviting Authority (TIA) well before the bid submission end date & time (as per Server System Clock). The TIA will not be held responsible for any sort of delay or the difficulties faced during the online submission of bids by the bidders.

(viii) After the bid submission (i.e. after Clicking "**Freeze Bid Submission**" in the portal), the bidders shall take print out of system generated acknowledgement number and keep it as a record of evidence for online submission of bid.

(ix) Bidder should follow the server time being displayed on bidder's dashboard at the top of the tender site, which shall be considered valid for all actions of requesting, bid submission, bid opening etc., in the e-tender system.

(x) All the documents being submitted by the bidders would be encrypted using PKI (Public Key Infrastructure) encryption techniques to ensure the secrecy of the data. The data entered cannot be viewed by unauthorized persons until the time of bid opening. The confidentiality of the bids is maintained using the secured Socket Layer 128bit encryption technology.

7. The unit rates in Bill of Quantities shall be quoted strictly in figures only and macros must be **enabled** to see the word representation of figures.

8. The tender shall be submitted online in **03(three) cover** system duly scanned and digitally signed by the authorized representative of the bidder as follows:

(A) Cover -1 (TENDER FEE & EMD)

Online bid should be submitted containing original scanned copy of following document in Cover-1.

(i) Scanned copy of proof for deposits of Tender fee.

(ii) Scanned copy of proof for deposit of Earnest Money Deposit (EMD) as detailed in the e-TCN.

OR

Scan copy of E-bank guarantee (E-BG) for the EMD amount from any of the commercial / scheduled Banks having validity period of 45(forty-five) days beyond the final bid validity period for the EMD/ Bid security i.e. 135 days from the last date of submission of bid as per the format in **APPENDIX-VI**. **Also the Acknowledgement receipt of the original e-BG for the EMD shall be uploaded in the first cover, otherwise the bid shall be rejected.**

OR

Scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma [at **APPENDIX-VI(A)]** of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**

N.B: The exemption towards submission of <u>EMD and tender Fee</u> shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum) on submission (Uploading) of certificate <u>in the first cover</u> at the time of bidding.

The firms who have not submitted required tender fee & EMD or exemption certificate in the <u>first cover</u> shall be treated as non-responsive / invalid and shall be rejected.

(B) <u>Cover -2 (PRE-QUALIFICATION/ TECHNICAL BID)</u>

Online bids should be submitted containing **original scanned copies** of following documents in Cover-2.

(i) To submit the scan copy of registration of the **firm in India under Company Act. 1956 or as amended.**

(ii) Scanned Copies of Similar Job Completion Certificate mentioning the Work executed value, copy of work order or agreement having Date of Commencement, Date of Completion, Contract Value, Contact address of the organisation.

(iii) Scanned Copies of Audited Balance Sheet/ Profit & loss account/ Certificate from Chartered Accountant for last 03(three) years ending **31st March 2026** in support of annual turnover**.**

(iv) Scanned Copy of Permanent Account Number (PAN) Card and GST registration certificate.

(v) Scanned copy of original TDS Traces Certificate must be furnished if the work completion Certificate has been obtained from any Private Organization is submitted.

(vi) Detailed information regarding current litigation in which the tenderer is currently involved. Else, NIL report to be submitted.

(vii) Details of present technical staffs and list showing qualifications and experience of key personnels proposed for administration and execution of this contract, both on and off site.

(viii) Names of partners / directors indicating their holding in the firm / company.

(ix) Power of Attorney or Letter of Authority from the person holding valid power of attorney issued by the company in favor of the person authorized to sign the tender document etc in suitable format.

(x) Copies of original document defining the constitution or legal status, place of registration and principal place of business of the company/ proprietorship firm, partnership firm or any other business structure.

(xi) UNDERTAKING BY THE BIDDER (in the firm's letterhead) as follows:

The bidders shall give an undertaking as below:

"We hereby undertake that –

a. we have not made any payment or illegal gratification to any person / authority connected with the bid process so as to influence the bid process and have not committed any offence under the Prevention of Corruption Act (PC Act) in connection with the bid.

b. Having understood all the terms and conditions of the tender document and having assessed the site conditions, we hereby confirm that the price offered by us is a firm price and includes all the taxes, duties, fees, Cess etc. and all incidental charges except GST.

c. We undertake and declare that our firm is not having Debarment / blacklisting/ ban of business with any government organizations.

d. We declare that we are not related to any officers of Paradip Port Authority or any officer of the rank of undersecretary or above in the Ministry of Ports, Shipping & Waterways(MoPS&W), Govt. of India."

N.B.: If firm is having any relation with officer of Paradip Port Authority then they should give a declaration along with the tender about the name of the relative who are employed as non-gazette employee in Paradip Port Authority.

(xii) Proof of Technical specifications of the dredger being offered in format **Appendix-V**.

a) *If the* Dredger *is in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid).

i) The Dredger to be offered for the contract should meet the Technical Specification similar to specification mentioned in the Scope of Work. (Proof to be submitted as per format at **APPENDIX – V).**

ii) To submit the Registration Certificate & other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, insurance certificate etc (Copy to be submitted) for the proposed dredger.

b) *If the* Dredger *is not in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid).

i)To submit Legally binding / enforceable MoU with the owner of the dredgeron a Rs.100/- Non-judicial stamp paper for chartering/ hiring for deployment at Paradip Port against the referred above tender along with Technical Specifications of the dredger being offered which shall be meeting to the Technical Specification similar to specification mentioned in the Scope of Work(Proof to be submitted as per format at **APPENDIX – V).**

ii) To submit the Registration Certificate & all other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, insurance certificate etc (Copy to be submitted) for the proposed dredger.

(xiii) In addition to above the firm may submit any other documents relevant to this tender.

PPA may seek any other details / documents which it may feel as necessary to ascertain and establish the competence in all respects.

(C) Cover-3 (FINANCIAL/ PRICE BID):

It shall contain the Price Bids for the work in the Bill of Quantity [BoQ] format. In the e-Procurement Portal, an intelligent Bill of Quantity in Microsoft Excel format shall be made available to the bidder. For Item rate tenders, the bidder shall fill in rates in figures and should not leave any cell blank. The line item total in words and the total amount shall be calculated by the system and shall be visible to the bidder. The bidder has to only write (type) the figures, the words will be self-generated (Enabling macros).

9. OPENING & EVALUATION:

i) For this tender, withdrawal of bid is not allowed within the validity period of the bid.

ii) Only those bidders shall be considered as qualified by PPA, who submits requisite EMD, Tender Fee & documents, accept all the terms & conditions of the Tender document unconditionally and meet the qualifying requirement stipulated in the Tender document. The decision of PPA shall be final and binding in this regard.

iii) The bidder shall bear all cost associated with the preparation & submission of his bid and PPA will in no case be responsible or liable for these cost, regardless of the conduct or outcome of the tendering process.

iv) **Evaluation of tender:** The tender shall be evaluated on the basis of submitted documentary evidences & total quoted amount in the enclosed format of BoQ. Normally the price of the lowest bidder is accepted but PPA is not bound to accept it and may discharge the tender without assigning any reasons.

v) Bid opening dates are specified during tender creation or can be extended vide corrigendum.

Note: Any **addendum/corrigendum** thus issued shall be notified in the website https://eprocure.gov.in/eprocure/app, notice board and through paper publication.

vi) The Bid openers; who have been pre-defined shall log on to the portal with their respective DSC. Unless all the Officers who have been declared as Opening officers, log on the portal with their DSC, the Tender cannot be opened.

vii) The Opening Officers will systematically check the scanned copy of proof towards EMD & Tender Fee. If found in order, then will continue opening of all other documents in the system provided under Technical Bids.

viii) After opening of the Technical Bid, the original documents as per requirement of the e-Tender Document will be verified at the office of the Deputy Conservator, PPA.

ix) (a) Any clarification or shortfall in technical documents shall be communicated exclusively through the e-procurement portal using the designated online functionality.

(b) Submission of documents through manual correspondence, physical mode, or external email shall not be entertained under any circumstances.

I Bidders shall comply within the system-generated timeline, failing which their bid shall be liable for rejection.

x) After evaluation of bid, all the bidders will get the information regarding their eligibility on website.

xi) Date of Financial/Price Bid opening would be specified after Technical Evaluation is completed.

xii) The Financial Bid/ Price-bid of the technically qualified bidders will be opened & evaluated on the notified date & time by the *Bid Openers* with their Digital Signature Certificate (DSC) in the presence of bidders or their authorized representative who wish to be present. The Financial bid of the bidders shall be opened one by one by the bid Openers. The system shall auto generate the Comparative statement. The bidders can view bid opening remotely on their personalized dash board under "Bid Opening (Live)" link.

xiii) After evaluation of bid, all the bidders will get the information regarding their eligibility on website. Thereafter, a system generated e-mail confirmation will be sent to all successful bidders. The bidders can check the same from the portal. The bidder will get the information regarding the status of their financial bid and ranking of bidders on website.

10. To assist in the examination, evaluation and comparison of tenders, PPA may ask tenderers individually for clarification and response to the same by the tenderer shall be in writing by post or by e-mail. However, no changes in price or substance of the tender shall be sought, offered or permitted.

11. The tender shall remain valid and open for acceptance for a period of 90 days from the date fixed for receiving the same. PPA may ask to extend the period of validity for a specific time as may be required by PPA. The request and response thereto shall be made in writing by e-mail or by post. The tenderers will have an option to refuse the request without forfeiting their tender security (EMD). However, in the event of the tenderer agreeing to the request, they will not be permitted to modify the tender.

12. PPA will determine whether the tender is substantially responsive to the requirements of the tender documents. For the purpose of this clause, a substantially responsive tender is one which inter alia conforms to all the terms, general conditions and specifications of the tender documents and technically suitable. The tenderer shall carefully submit all the documents as required under the tender failing which the offer is liable to be treated as non-responsive as per clause No.3 of GCC below. A tender which, in relation to the cost estimates of PPA, is seriously unbalanced, may be rejected as non-responsive.

13. The tenderer shall quote realistic rates in respect of the services to be provided. The rates shall be firm and no other increase or decrease in prices will be allowed during the period of the contract.

14. At any time prior to the last date of submission of tender, PPA may for any reason whatsoever, change or modify the tender documents by addendum(s) / corrigendum(s). Tenderer may seek any clarification from PPA prior to submission of their bid. The addendum / corrigendum so issued will be published in e-procurement portal / PPA website at least 07 days prior to the last date for submission of the tender. The amendment to the document so carried out will form part of the tender and shall be binding upon the tenderers. PPA may at their discretion extend the last date for submission of tender to enable the tenderers reasonable time to submit their tender after taking into account such addendum / corrigendum.

15. No tenderer will be permitted to withdraw his tender after the last date for submission of the tender or such extended date as the case may be and before the expiration of the period of validity of the tender or such extended dates as the case may be. In the event of the tenderer modifying / withdrawing his tender after the last date of submission or such extended date as the case may be and before the expiration of period of validity of such extended date as the case may be, the tender shall be cancelled and the amount paid as tender security i.e. EMD shall be forfeited. The decision of PPA in this regard shall be final.

16. All costs, charges and expenses including stamp duty in connection with the tender submission shall be borne by the tenderer. In addition, all costs, charges and expenses including stamp duty in connection with the contract as well as preparation and completion of agreement by the tenderer's attorneys shall be borne and payable by the tenderer. No claim in this regard would be entertained by PPA.

17. <u>CONFIDENTIALITY:</u>

The Paradip Port Authority desires that this tender shall be treated strictly as confidential. The tenderer shall be obliged to observe this desire.

18. <u>EARNEST MONEY DEPOSIT (EMD):</u>

(a) The Earnest Money Deposit is to be submitted through NEFT / RTGS as instructed in the e-TCN.

OR

The bidders may deposit the EMD/ Bid security in the form of E-bank guarantee (E-BG) from any of the commercial / scheduled Banks having validity period of 45 (Forty-Five days) beyond

the final bid validity period i.e. 135 days from the last date of submission of bid as per the format in **APPENDIX – VI**. **Also the Acknowledgement receipt of the original e-BG for the EMD shall be uploaded in the first cover, otherwise the bid shall be rejected.**

OR

The bidder shall upload the scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma[at APPENDIX-VI(A)] of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**

N.B: The exemption towards submission of EMD shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi& Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / URC (Udyam Registration *Certificate*) on submission (Uploading) of certificate in the first cover at the time of bidding.

N.B: The firms who have not submitted required EMD or exemption certificate in the first cover shall be treated as non-responsive / invalid and shall be rejected.

(b) The EMD shall be forfeited, in the event of the tenderer withdrawing / modifying his tender before the expiry of tender validity of 90 days from the date of submission.

(c) The Earnest Money Deposit of unsuccessful bidders shall be returned on award of contract. The EMD of the successful tenderer shall be refunded only on receipt of Performance Security Deposit(PSD), Extra Additional Security Deposit(EASD)and signing of the agreement.

(d) PPA reserves the right to forfeit the EMD in respect of successful bidder, if the bidder fails to furnish the necessary Performance Security Deposit (PSD) & Extra Additional Security Deposit(if applicable) so as to sign the agreement within stipulated period to enter into a contract.

(e) The EMD shall also be forfeited, in case of any counter conditions / conditional bidding found in the Price Bids. If the firms are found to have submitted fraudulent or misguiding document then their bids shall be out rightly rejected along with forfeiture of EMD and security deposits and the firm shall be debarred for a period of 02 years from participating in any tenders of PPA.

(f) No interest will be payable on the Earnest Money deposit.

(g) Any Firm claiming exemption from paying the EMD and then if they withdraw or modify their Bids during the period of validity, or if they are awarded the contract and fail to sign the contract, or to submit a Performance Security Deposit (PSD) & Extra Additional Security Deposit(if applicable) before the deadline, then the bidder will be suspended for a period of 02 years from participating in any future tenders of Paradip Port Authority. Also the issuing authority of Exemption Certificate shall be notified to take necessary action as deemed fit against the firm.

19. SECURITY DEPOSITS & SIGNING OF AGREEMENT:

(a) PERFORMANCE SECURITY DEPOSIT (PSD):

The selected firm shall have to submit the Performance Security Deposit within 30 days from the date of issue of Letter Of Acceptance (LOA):

A sum of 10% of contract value of the tender shall be deposited by the successful tenderer (Contractor) as Performance Security Deposit (PSD) in shape of Demand draft / Banker's cheque / e-Bank Guarantee**(e-BG)** issued by any scheduled Bank as per prescribed format as per **APPENDIX – VII.**

OR

Performance Security may be furnished in the form of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma of Paradip Port Authority.

The Performance Security Deposit in the format of Surety Bond/ Fixed deposit shall be as per format **APPENDIX –VII(A)**.

Validity of PSD e-BG:

The e-BG towards PSD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

OR

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

After authentication/ verification of the PSD (submitted in any of the formats above) by PPA, Work order will be issued.

The P.S.D will be released on satisfactory completion of the work.

Forefeiture Of PSD & Termination Of The Contract:

In addition to applicable L.D./Penalty, the **Performance Security Deposit (PSD)** of 10% of the contract value shall be forfeited by PPA in any of the followings:

(i) If the dredger is not deployed & has not commenced dredging within 30 (thirty) days from the scheduled date of commencement.

(ii) If the dredger remains non-operational /un-available for more than **30** days continuously during the contract period (01st may to 31st October in every year) for any reasons except declared bad weather, idle hours on Port account (if any) & idle hours due to non- availability of sufficient silted quantity as approved by the Deputy Conservator, PPA and if the contractor fails to replace the deployed dredger with similar / higher hopper capacity dredger within 30 days from the start date of non-operational /un-availability.

In such cases, in addition to forfeiture of all Security Deposits, The Board of PPA reserves the right to terminate the contract and debar the firm for a period of 02(two) years from participating in any tender of Paradip Port Authority & engage suitable dredger at the risk and cost of the contractor to complete the remaining work.

(b) EXTRA ADDITIONAL SECURITY DEPOSIT (EASD) & ITS CALCULATION:

Over and above the E.M.D., tenderer quoting more than 15% below the estimated cost of work put to tender shall have to pay an 'Extra Additional Security Deposit' (E.A.S.D) separately. E.A.S.D. wherever applicable will be collected from the successful bidder along with the performance Security Deposit (PSD) after issuing the Letter of Acceptance (LOA). Back-out from the offer by the participating bidder after opening of Technical Bid (in case of two stage bid) or price bid (in case of single stage bid) OR non-deposit of EASD by the successful bidder will liable for forfeiture of EMD and suitable action shall be taken up against the bidder as per decision of competent authority of PPA. EASD may be accepted in form of Demand Draft/Bankers Cheque/E-bank guarantee/ Fixed Deposit/ Insurance Surety Bond as per the format at **APPENDIX_VIII / VIII(A**) in favour of Paradip Port Authority (refer to beneficiary details attached to e-BG format) and must be drawn on any scheduled Commercial Bank / Insurance company / online payment.

Extra Additional Security Deposit (E.A.S.D) = $\frac{A}{100}$ x Estimated cost of work put to tender

Where A = Percentage rebate quoted on the estimated cost of work put to tender by the tenderer minus 15 (Fifteen).

Example: If the tenderer desires to quote percentage rebate 25% (Twenty-five) percent, then the Extra Additional Security Deposit (E.A.S.D) shall be worked out as under.

E.A.S.D Amount = $\frac{(25 - 15)}{100}$ x estimated cost of work put to tender.

Note: (i) The e-BG towards EASD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

Or

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

(ii) The E.A.S.D will be released on satisfactory completion of the work.

Forfeiture of EASD :

E.A.S.D. will be forfeited and the firm will be debarred for a period of 2yrs from participating in any tender of PPA, if the contractor fails to execute the work as per the Scope of the Work.

(c) CONDONATION PERIOD:

If the Contractor fails to submit the PSD & EASD by scheduled date, then the following conditions shall be applicable:

(i) The delay condonation will be for a period of 15 days beyond scheduled date as mentioned in Letter of Acceptance (LoA), at the written request of the Contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG of 5% over the original (as per LoA) security deposit / e-BG value.

(ii) The above period can be further extended for another 15 days at the written request of the contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG

of 10% over the original (as per LOA) security deposit / e-BG value which shall be in addition to above 5% (i.e. total 15% extra over the original Security deposit/e-BG value).

If the Contractor fails to deposit EASD / PSD even within the extended period of 30 days after the scheduled date as mentioned in Letter of Acceptance (LOA), his bid shall be summarily rejected and the bidder will be debarred from participating PPA tenders for a period of 02 (two) years apart from forfeiting his tender EMD. In case of Exemption certificate against EMD submitted by the contractor, the issuing authority of Exemption Certificate shall be notified to take necessary action as deemed fit against the firm.

(d) **SIGNING OF AGREEMENT:** The tenderer, whose offer has been accepted shall execute an agreement with PPA on aRs.100/- non judicial stamp paper in the prescribed format [as per **Appendix-XII**] within 7 days from the date of issuance of work order. All the expenditure in connection with signing of agreement shall be borne by the tenderer.

After the receipt of the Performance Security Deposit(PSD), Extra Additional Security Deposit(EASD) – if applicable & Signing of the Agreement, EMD of the successful bidder will be refunded to the bidder.

20. CONFIDENTIALITY:

The Paradip Port Authority desires that this tender shall be treated strictly as confidential. The tenderer shall be obliged to observe this desire.

21. DISCLOSURE BY THE BIDDER:

The bidder shall disclose any payment made or proposed to be made to any intermediaries (agents etc.) in connection with the bid.

22. INTEGRITY PACT:

For this tender, the integrity pact agreement format as given at **Appendix – XIV** shall form a part of the tender document and shall be signed by the Purchaser and the Contractor. This work will be included in the Integrity Pact & accordingly will be entrusted to the Independent External Monitors (IEMs) for effecting transparency & maintaining quality. (1) **Shri Pramod Shripad Phalnikar, IPS (Retd.),** ' Sadbhav ' , Plot No. 15, Rhythm 1, Nanded City Township, Sinhagad Road, Pune.Mob.: 9011943674,(Email: pramodphalnikar@gmail.com.) and (2) **Shri Ramesh Narain Misra, Ex-CMD,SJVN,** Flat No. 6026,Pocket 8,Sector B, Vasant Kunj,New Delhi-110070 Mobile No. 9858111243, **E-mail: RNMISHRA1957@GMAIL.COM** & **MISRARAMESH@YAHOO.CO.IN** have been appointed as IEMs for Paradip Port Authority by CVC. All necessary coordination are to be provided to them as & when required.

The firm must download **APPENDIX-XIV,** Integrity Pact (IP) and upload same duly signed by the Authorize signatory along with the technical bids. **Any bid not accompanied by Integrity Pact duly signed by the bidder shall be considered as non-responsive bid and shall be rejected anyway.**

Successful bidder has to submit the Integrity Pact (IP) on an Rs.100/- non judicial stamp paper duly signed by the Authorize signatory of the firm at the time of the signing the contract agreement.

Section-II

GENERAL CONDITIONS OF CONTRACT

1. DEFINITIONS & INTERPRETATIONS:

Following words shall have the meaning hereby assigned to them except where contract otherwise requires:

(a) **Board :**Board means the Board of Paradip Port Authority (PPA),constituted by the Central Government under the Major Port Authority Act' 2021 as amended from time to time or any other Officer duly authorized by them to execute the contract.

(b) **Contractor :** Contractor means a person or company whose tender has been accepted by the Board and includes the contractor personnel, representative, successor and permitted assignees.

(c) **Chairperson :** Chairperson shall mean the Chairperson of Paradip Port Authority.

(d) **Dy. Chairperson :** Dy. Chairperson shall mean the Deputy Chairperson of Paradip Port Authority.

(e) **Deputy Conservator:** Deputy Conservator means the Deputy Conservator of Paradip Port Authority.

(f) **Works :** Works mean, works to be executed in accordance with the contract.

(g) **Contract** : Contract means the notice inviting the tender, the tender and acceptance thereof and formal agreement if any executed between the Board and the contractor together with the documents referred to therein including the conditions with the Appendix and special conditions, price schedule / Bill of Quantities and schedule of rates etc. All these documents taken together shall be deemed to form one contract and shall be complementary to one another.

(h) **Contract Price :** The contract price means sum named in the tender subject to such addition thereof on deduction from there as may be made under the provisions therein after contained.

(i) **Approved:** Approved means approved in writing including subsequent written confirmation of previous verbal approvals and 'approval' means approved in writing including as aforesaid.

(j) **Deputy Conservator's Representative:** Deputy Conservator's representative means any Officer duly authorized by the Deputy Conservator to supervise the works. He may be Sr. Hydrographic Surveyor/ Hydrographic Surveyor.

(k) **Work done Certificate:** Work done certificate means certificate issued by the Deputy Conservator or his representative where the work has been completed to his satisfaction in accordance with the contract.

(l) **Sub-contractor :** Sub-contractor means any person or firm or company to whom any part of work has been entrusted by the Contractor with the written consent of the Deputy Conservator.

(m) **Bad weather:** Storm signal of LCS-III and above hoisted at this port will be considered as Bad weather in addition to any other period declared as Badweather by Deputy Conservator, PPA.

(n) **Ear-marked dredger**: Deployed / substituted Dredger(s) meeting to the Technical Specification as per the tender.

(o) **Survey Day**: All the working days except Sundays(morning to noon hours in a day).

(p) **Scheduled date of commencement of Work:** Each year, the contractor shall have to deploy earmarked dredger as per contract requirement by 01st May of every year in the contract period i.e. by 01st may 2027 for the year 2027-28, by 01st may 2028 for the year 2028-29 & by 01st may 2029 for the year 2029-30 . The deployed dredger shall have to commence dredging work by these scheduled dates.

2. **BOARD'S RIGHT TO ACCEPT OR REJECT ANY TENDER :** The Board reserves the right to reject or accept any or all offers without assigning any reasons. The Board is also within its rights to negotiate with any bidder for the early implementation of the award of contract.
3. **DETERMINATION OF RESPONSIVENESS:** The tenders will be scrutinized to determine whether the tender is substantially responsive to the requirements of the tender documents without any deviations or reservation. A tender which, in relation to the estimated cost, is unrealistic may be rejected as non- responsive. The decision of the Deputy Conservator in this regard shall be final.
4. **PROCESS TO BE CONFIDENTIAL:**

After the opening of tenders, information relating to the examination, clarification, evaluation and comparisons of tenders and recommendations, concerning the award of contract shall not be disclosed to bidders or any other persons. Any efforts by the bidders to influence the process of examination, clarification, evaluation and comparison of tenders and decisions concerning award of contract may result in rejection of the bidder's bid.

5. **NOTIFICATION OF AWARD:**

(a) Prior to the expiration of the period of tender validity, the successful bidder will be notified through letter by post / e-mail confirming that their offer has been accepted. This letter is to be called Letter of Acceptance(LOA). This Letter of Acceptance shall indicate the sum to be paid to the Contractor in consideration of the execution of the contract.

(b) Letter of Acceptance will be issued in the name of the company which has purchased / submitted the tender, and will constitute the conditions of contract.

(c) Upon the receipt of Letter of Acceptance of the contract by the successful bidder, he shall submit Performance Security Deposit(PSD), Extra Additional Security Deposit(EASD), if applicable and prepare two sets of Agreements included in the Tender Document, after taking into account any changes thereafter agreed by both the parties, at the earliest without any delay and complete all the formalities and submit the same to the Board duly executed on stamp paper for appropriate value within 7 days from the date of issuance of work order. One set of the agreement will be returned to the Contractor after the signature of the authorized person.

6. Any delay caused due to any correspondence / clarification / request etc. received from the bidder after the date of issue of the Letter of Acceptance will be to the account of the successful bidder.

7. **NO CORRESPONDENCE FROM UNSUCCESSFUL BIDDER :**

No correspondence will be entertained from the unsuccessful bidders.

8. **SECURITY DEPOSITS & SIGNING OF AGREEMENT:**

(a) PERFORMANCE SECURITY DEPOSIT (PSD):

The selected firm shall have to submit the Performance Security Deposit within 30 days from the date of issue of Letter Of Acceptance (LOA):

A sum of 10% of contract value of the tender shall be deposited by the successful tenderer (Contractor) as Performance Security Deposit (PSD) in shape of Demand draft / Banker's cheque

/ e-Bank Guarantee**(e-BG)** issued by any scheduled Bank as per prescribed format as per **APPENDIX – VII.**

OR

Performance Security may be furnished in the form of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma of Paradip Port Authority.
The Performance Security Deposit in the format of Surety Bond/ Fixed deposit shall be as per format **APPENDIX –VII(A)**.

Validity of PSD e-BG:

The e-BG towards PSD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

OR

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

After authentication/ verification of the PSD (submitted in any of the formats above) by PPA, Work order will be issued.
The P.S.D will be released on satisfactory completion of the work.

Forefeiture Of PSD & Termination Of The Contract:

In addition to applicable L.D./Penalty, the **Performance Security Deposit (PSD)** of 10% of the contract value shall be forfeited by PPA in any of the followings:

(i) If the dredger is not deployed & has not commenced dredging within 30 (thirty) days from the scheduled date of commencement.

(ii) If the dredger remains non-operational /un-available for more than **30** days continuously during the contract period (01st may to 31st October in every year) for any reasons except declared bad weather, idle hours on Port account (if any) & idle hours due to non- availability of sufficient silted quantity as approved by the Deputy Conservator, PPA and if the contractor fails to replace the deployed dredger with similar / higher hopper capacity dredger within 30 days from the start date of non-operational /un-availability.

In such cases, in addition to forfeiture of all Security Deposits, The Board of PPA reserves the right to terminate the contract and debar the firm for a period of 02(two) years from participating in any tender of Paradip Port Authority & engage suitable dredger at the risk and cost of the contractor to complete the remaining work.

(b) EXTRA ADDITIONAL SECURITY DEPOSIT (EASD) & ITS CALCULATION:

Over and above the E.M.D., tenderer quoting more than 15% below the estimated cost of work put to tender shall have to pay an 'Extra Additional Security Deposit' (E.A.S.D) separately. E.A.S.D. wherever applicable will be collected from the successful bidder along with the performance Security Deposit (PSD) after issuing the Letter of Acceptance (LOA). Back-out from the offer by the participating bidder after opening of Technical Bid (in case of two stage bid) or price bid (in case of single stage bid) OR non-deposit of EASD by the successful bidder will liable for forfeiture of EMD and suitable action shall be taken up against the bidder as per decision of competent authority of

PPA. EASD may be accepted in form of Demand Draft/Bankers Cheque/E-bank guarantee/ Fixed Deposit/ Insurance Surety Bond as per the format at **APPENDIX_VIII / VIII(A**) in favour of Paradip Port Authority (refer to beneficiary details attached to e-BG format) and must be drawn on any scheduled Commercial Bank / Insurance company / online payment.

Extra Additional Security Deposit (E.A.S.D) = $\frac{A}{100}$ x Estimated cost of work put to tender

Where A = Percentage rebate quoted on the estimated cost of work put to tender by the tenderer minus 15 (Fifteen).

Example: If the tenderer desires to quote percentage rebate 25% (Twenty-five) percent, then the Extra Additional Security Deposit (E.A.S.D) shall be worked out as under.

E.A.S.D Amount = $\frac{(25 - 15)}{100}$ x estimated cost of work put to tender.

Note: (i) The e-BG towards EASD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

OR

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

(ii) The E.A.S.D will be released on satisfactory completion of the work.

Forfeiture of EASD :

E.A.S.D. will be forfeited and the firm will be debarred for a period of 2yrs from participating in any tender of PPA, if the contractor fails to execute the work as per the Scope of the Work.

(c) CONDONATION PERIOD:

If the Contractor fails to submit the PSD & EASD by scheduled date, then the following conditions shall be applicable:

(i) The delay condonation will be for a period of 15 days beyond scheduled date as mentioned in Letter of Acceptance (LoA), at the written request of the Contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG of 5% over the original (as per LoA) security deposit / e-BG value.

(ii) The above period can be further extended for another 15 days at the written request of the contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG of 10% over the original (as per LOA) security deposit / e-BG value which shall be in addition to above 5% (i.e. total 15% extra over the original Security deposit/e-BG value).

If the Contractor fails to deposit EASD / PSD even within the extended period of 30 days after the scheduled date as mentioned in Letter of Acceptance (LOA), his bid shall be summarily rejected and the bidder will be debarred from participating PPA tenders for a period of 02 (two) years apart from forfeiting his tender EMD. In case of Exemption certificate against EMD submitted by the contractor, the issuing authority of Exemption Certificate shall be notified to take necessary action as deemed fit against the firm.

(d) SIGNING OF AGREEMENT: The tenderer, whose offer has been accepted shall execute an agreement with PPA on aRs.100/- non judicial stamp paper in the prescribed format [as per **Appendix-XII**] within 7 days from the date of issuance of work order. All the expenditure in connection with signing of agreement shall be borne by the tenderer.

After the receipt of the Performance Security Deposit(PSD), Extra Additional Security Deposit(EASD) – if applicable & Signing of the Agreement, EMD of the successful bidder will be refunded to the bidder.

09. CARE AND DILIGENCE:

The Contractor shall exercise all reasonable care and diligence in the discharge of all technical, professional and contractual duties to be performed by them under this contract and shall be fully responsible to the Deputy Conservator for the proper, efficient and effective carrying out of their duties.

All the vessels deployed in the contract are to be kept in sea worthy condition at all times. The Contractor has to take up regular maintenance of the vessels to keep them tight, staunch, strong and every way fit and keep them manned by competent master & crew for performance of the contract. All the statutory certificates of the vessels should be kept valid at all times.

10. COMPLIANCE WITH STATUTORY REQUIREMENTS:

(a) The Contractor shall at all times during the continuance of the contract comply fully with all existing Acts, Regulations and bye laws including all statutory amendments and re-enactment of State or Central Government and other local authorities and any other enactments and acts that may be passed in future either by the State or the Central Government or the local authority, including Indian Workmen's Compensation Act, Contract Labour (Regulation and Abolition) Act, 1970 and equal Remuneration Act, 1976, Factories Act, Minimum Wages Act, Provident Fund Regulations, Employees Provident Fund Act, Merchant Shipping Act, and other maritime legislations/rules/regulations, the Dock Worker's Act-1948 etc., in as far as they are applicable to this contract. The Contractor shall indemnify and keep the Board indemnified in case any proceedings are taken or commenced by any authority against the Board for any contravention of any of the laws, bye laws or scheme by the Contractor. If as a results of contractor's failure, negligence, omission, default or non-observance of any provisions of any laws, the Board is called upon by any authority to pay or reimburse or required to pay or reimburse any amount, the Board shall be entitled to deduct the same from any moneys due or that may become due to the Contractor under this contract or any other contract or otherwise recover from the Contractor any sums which the Board is required or called upon to pay or reimburse on behalf of the Contractor.

(b) Notwithstanding the contractual obligation, the Board shall be entitled to all protections and defences under the provisions of the Major Port Trusts Act, 1963/The Major Port Authority Act' 2021 and the Indian Ports Act 1908 including any amendments / changes as may be incorporated.

(c) The contractor shall abide by all the Port Rules & Regulations in force from time to time.

11. MAINTENANCE AND OPERATION OF DREDGER(S):

(a) The Vessel during the contract period shall abide by the Lawful orders of the Deputy Conservator. The Contractor shall maintain the Vessel, in efficient operating condition and in accordance with good commercial maintenance practice.

(b) The Contractor shall from time to time during the contract period replace such items of equipment as shall be so damaged or worn as to be unfit for use. The Contractor is to carry out all repairs or replacement of any damaged, worn or lost parts or equipment be affected in such manner (both as regards workmanship and quality of materials) as not to diminish the value and efficiency of the Vessel.

(c) If the Deputy Conservator has reason to be dissatisfied with the conduct or efficiency of the Master, Officer or Crew, the Contractors on receiving particulars of the complaint, promptly

investigate the matter and if necessary action shall be taken to change the officer/ crew at their own cost.

(d) The Masters of the Dredger(s) and Crew shall carryout all Lawful Orders of the Deputy Conservator or his representative.

12. <u>ASSIGNMENT AND SUBLETTING:</u>

The contractor shall not be permitted to sublease the work nor assign the right and interest in these presents nor assume a fresh partner or partners nor dissolve the partnership at present existing between them in reference to this contract without the written permission of the Deputy Conservator and such consent, if any, given shall not relieve the Contractor from any liability or obligations under the contract and he shall be responsible for the acts, defaults and neglects of any sub-contractor or his servants, agents or workmen as full as if they were the acts, defaults or neglects of the Contractor.

13. <u>CONTRACTOR'S SUPERINTENDENCE & REMOVAL OF WORKMEN:</u>

(a) The Contractor or his competent and authorized agent or representative approved of in writing by the Deputy Conservator or his Representative (which approval may at any time be withdrawn) is to be constantly on the work. Such authorized agent or representative shall receive on behalf of the contractor, directions, instructions or other notices from the Deputy Conservator or his Representative. The Contractor shall maintain a suitable office in Paradip Port to which the Dy. Conservator or his representative may send communications and instructions.

(b) The contractor shall employ in and about the execution of the works only such persons as are careful, skilled and experienced in their several trades and calling and the Deputy Conservator or his Representative shall be at liberty to object to and require to the contractor to remove from the work any person employed by the contractor, who in the opinion of the Deputy Conservator or his Representative misconducts himself or is incompetent or negligent in the proper performance of his duties or whose employment is otherwise considered by the Deputy Conservator or his Representative to be undesirable and such persons shall not be again employed upon the work without the written permission of the Dy. Conservator, PPA.

(c) Any such person as mentioned in (b) above shall be replaced within a period not more than 3 days at the expense of the Contractor by a qualified & competent substitute. Should the contractor be requested to repatriate any person removed from work shall do so and shall bear all costs in connection therewith without hampering any dredging activities.

(d) The Contractor shall be responsible for the proper behavior of all the staff, and shall exercise a proper degree of control over them and in particular and without prejudice to the said generally, the Contractor shall be bound to prohibit and prevent any employees from trespassing or acting in any way detrimental or prejudicial to the interest of the community or of the proprietors or occupiers of land and properties in the event of such employee trespassing, the Contractor shall be responsible for damage or injury or any other grounds whatsoever. The decision of the Deputy Conservator upon any matter arising under this Article shall be final. The Contractor shall be liable for any such liability which may have implication of law be deemed to be the liability of the Owner on account of deployment of Contractor's staff etc. or incidental or arising out of the execution of the Contractor.

14. <u>RATES AND AMOUNTS INCLUDE ALL CHARGES:</u>

The rates and amounts submitted by the tenderer shall be gross rates and amounts inclusive of all taxes & duties except GST which shall be paid at the prevailing rate. Any new tax that state/central Govt. may levy after the last date of submission of tender will be reimbursed by Paradip Port Authority. Any variation in the taxes during the pendency of contract will be adjusted in either way.

15. PERIOD OF CONTRACT AND PAYMENT:

(i) The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

(ii) Payment will be made basing on Hopper-measurement volume of dredged solid material as per DLM data using Hopper Measurement formula mentioned in the Scope of Work on monthly basis.

(iii) In case, the actual dredged quantity by the dredger(s) during the period from 01st may to 31st October in a year is less than 3.30 Million M^3 only due to non- availability of sufficient silted quantity in the dredging areas**.** Minimum guaranteed payment will be made to the contractor for 3.30 Million M^3 subject to no L.D. is levied for any month during May to October in the year. In case of L.D. levied for the months during the period (May to October) in a year, Minimum Guaranteed Quantity of 3.30 Million M^3 shall be reduced @ 0.55 Million M3 per month in which L.D. is levied. The lowest rate among all dredging areas as per the Work Order will be applied to the difference between the reduced Minimum Guaranteed Quantity and actual dredged quantity.

[Example: If L.D.s are applicable for 02(two) months out of 06(six) months in a year, then reduced Minimum Guaranteed Quantity for payment shall be 3.30 Million M3-(2x0.55 Million M3)= 2.20 million M3.]

(iv) No claim from a contractor shall be entertained after lapse of 3 years from the date of arising the claim.

16. IDLING HOURS FOR THE DREDGER:

(i) The Deputy Conservator, PPA may permit the dredger to remain idle in case of Unavailability of Sufficient silted quantity* in any of the dredging areas except unapproachable areas (un- approachable due to berth occupancy by vessels/ crafts/ dredgers or any other reasons) assessed through the joint check survey carried out on the subsequent survey day as per feasibility on a 02(two) days advance written request by the contractor.

*Unavailability of Sufficient silted quantity shall not be considered in any of the following cases:

(a) Any isolated patch where depth has been reduced more than 0.5m from the designed depth in any dredging area as per the survey soundings (1x1 grid from the Multibeam data)

(b) An average layer thickness (Volume above / Area above) of 0.2 metre or more in an dredging area (Full area upto its dredging limit in case of any Dock & EC, individual Turning basins along with their adjacent areas upto dredging limit in case of TCs, and a target area of 2000Mx300M as per the predefined chainages in case of AC) as per Advanced Channel Design / TIN modelled Volume in Hypack Software or as suitable to PPA.

N.B: Refer Table in clause No.2 (iv) of Scope of Work for dredging limits of different dredging areas.

However, dredger(s) can't be allowed to remain idle due to unavailability of sufficient silted quantity until a joint check survey is carried out for assessment of availability of sufficient silted quantity.

(ii) When the dredger is permitted by Dy. Conservator, PPA to remain idle due to non-availability of sufficient silted quantity, the dredger must be in readiness to resume dredging within 02(two) hours' notice from PPA, failing which the dredger shall be taken as idle due to Breakdown on the account of the dredger from the time of given notice from PPA till the resume of dredging.

17. <u>DEPLOYMENT SCHEDULE</u>:

i) Every year, the Contractor shall deploy by 1st May of the year, at least 01(one) no. of Trailer Suction Hopper Dredger (TSHD) of minimum Hopper capacity of **8000**M^3 & must be Capable of dredging up to a depth of 30 Mtrs. from the sea level.

<u>N.B:</u> The dredger deployed/ substituted by the contractor meeting to the Technical Specifications as per the tender shall be regarded as earmarked dredger.

ii) The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. The earmarked dredger shall be compulsorily carrying out dredging from 01st May to 31st October in each year (i.e. for a period of 06 months in a year) and shall continue dredging as per availability of quantity till the extended period (if any). Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

18. <u>INCOME TAX DEDUCTION:</u>

Deduction of Income Tax shall be made from any amount payable to the Contractor as per the relevant provisions of the Income Tax Act.

19. <u>INSURANCE:</u>

The bidder has to submit copy of following insurance certificates before commencement of dredging.

(a) The Contractor shall insure the Dredger(s), materials and other plants brought to the site to their full value in the name of the Contractor against all loss or damage whatever cause arising during course of operations.

(b) All the vessels deployed in the contract are to be covered for wreck removal and pollution risk by P&I Club which is a member of International Association of P&I Clubs.

20. <u>LIQUIDATED DAMAGES (L.D.):</u>

(i) Liquidated damage (LD) shall be imposed at the rate of 0.15% of contract value per day or part thereof for the delay in deployment of the earmarked dredger upto 10(ten) days beyond scheduled date of commencement. If the earmarked dredger is delayed beyond 10(ten) days, then L.D. shall be imposed at the rate of 0.30% of the contract value per day or part thereof w.e.f. 11th day.

(ii) Liquidated damage (LD) shall be imposed at the rate of 0.15% of the contract value per day or part thereof, if any ear-marked dredger remains non-operational/unavailable for more than 06(six) days cumulatively in a calendar month(May to 31ctober in each year) except declared bad weather, idle hours on Port account (if any) & idle hours due to non- availability of sufficient silted quantity as approved by the Deputy Conservator, PPA,. Storm Signal of LCS-<u>III</u> or above hoisted at this port will be considered as bad weather in addition to any other period declared as bad weather by the Deputy Conservator, PPA.

(iii) Minimum 5.5 lakhs Cu.M of Solid material shall have to be dredged in each calendar month from 1st May to 31st October in each year subject to availability of silted quantity, failing which Liquidated Damages (L.D.)/ Penalty shall be imposed @20% of the dredging cost of the shortfall quantity @ lowest rate among the dredging areas as per the work order.

(iv) The Dredger(s) must have Bow-Thruster (independent of dredging system) in working condition during dredging of Channels/Docks / Berth-face failing which cost of 2% of the dredged quantity during non-operational of bow thruster shall be deducted as Liquidated Damage (L.D).

(v) The Dredger(s) must have operational jet system (independent of dredging system) during dredging with minimum jet pressure of 05 bars, failing which cost of 2% of the dredged quantity during the non-operational of Jet system shall be deducted as Liquidated Damage(L.D).

(vi) The cumulative Liquidated Damages (L.D) to be limited to 10% of the contract value on account of (i) Delayed deployment of dredger(s) (ii) un-availability/non-operational for more than 06 days during the calendar month, (iii) Non-achievement of minimum target quantity of 5.5 lakhs CuM. (iv) non-operational of Bow-thrusters (v) non-operational of jet system. If the total LD exceeds 10% of the contract value, in such case, PPA reserves the right to terminate the contract with forfeiture of Performance Security Deposit (PSD) & engage suitable dredger at the risk and cost of the contractor to complete the remaining work.

N.B:-All volume calculations towards the assessment of availability of sufficient silted quantity/ layer thickness in the dredging areas will be ascertained from the joint hydrographic survey -TIN (1mx1m) grid (actual) soundings using advanced channel design/ TIN modelled volume in Hypack software or as suitable to PPA.

21. CONTRACTOR TO INDEMNIFY BOARD:

(a) Contractor shall indemnify Board and every member, worker and employee of the Board against all actions, proceedings, claims, demands costs and expenses whatsoever arising out of or in connection with the matters referred herein and all actions, proceedings, claims, demands costs and expenses which may be made against Board for or in respect of or arising out of any failure by Contractor in the performance of the obligations under the Contract shall not be liable for or in respect of any damages or compensation payable by law in respect of or in consequence of any accident or injury to any workmen or other person in the employment of Contractor or his Sub-contractor and Contractor shall indemnify and keep indemnified Board against all damages and compensations and against all claims, damages, proceedings costs, charges and expenses whatsoever in respect so thereof or in relation thereto.

(b) Notwithstanding that all reasonable and proper precautions may have been taken by the Contractor at all times during the currency of the agreement, the Contractor shall nevertheless be wholly responsible for all damages caused by the Vessel (supplied by the Contractor under this agreement to the Port), to the property of PPA during the currency of the agreement.

22. EMPLOYEES OF BOARD NOT INDIVIDUALLY LIABLE:

No official or employee of the Board shall in any way be personally bound or liable for acts or obligation under the contract or answerable for any default or omission in the observance or performance of any of the acts, matters or things which are herein contained.

23. FORCE MAJEURE:

(a) In the event of either party being rendered unable by Force Majeure to perform any obligation required to be performed under this contract, the relative obligation of the party affected by such Force Majeure shall upon notification to the other party be suspended for the period during which such cause lasts. No payments may be made for force majeure period.

(b) The term Force Majeure shall mean acts of God, war, riot, sabotage and acts and regulations of Government of India, State Government or any local Government / authority.

(c) Upon the occurrence of such cause and upon its termination the party alleging that it has been rendered unable as aforesaid thereby, shall notify the other party in writing immediately not later than 48 hours of the alleged beginning and ending thereof giving full particulars and satisfactory evidence in support of its claim. Failure to do so may liable the party being denied of the shelter of the clause.

(d) The decision of the Deputy Conservator, PPA shall be final and binding in this regard.

24. FORE-CLOSURE OF CONTRACT:

The contract is for 03(three) years, however PPA reserves the right to curtail or foreclose the contract (in whole or in part) at any time during its execution without assigning any reason by giving a minimum 90 (ninety) days advance notice to the contractor without any financial liability to PPA This clause will be effective after completion of the 01st year of dredging (01st May to 31st October of the year 2027)of the contract.

25. TERMINATION OF CONTRACT:

In case of any major breach of the contract agreement, Paradip Port Authority(PPA) shall terminate the Contract along with forfeiture of Performance Security Deposit (PSD)& Extra Additional Security Deposit (EASD) and debar the firm for 02 (Two) years from participating in any Tender of Paradip Port Authority. In such case, PPA reserves the right to engage suitable dredger(s) at the risk and cost of the contractor to complete the remaining work.

26. CONDITIONAL OFFER:

No conditional offer will be accepted from any firm. If any firm is submitting the tender with any condition, then, his bid will out rightly be rejected alongwith forfeiture of EMD.

27. BOARD LIEN:

The Board shall have a lien on and / over all or any moneys that may become due and payable to the contractor under this contract or any other contract or from any amount lying with them or under their control and in respect of any debt or sum that may become due and payable by the Board to the Contractor either alone or jointly with another or other and either under this contract or under any other contracts or transaction of any nature whatsoever between the Board and the contractor. If any lien or claim remained unsettled after all payments are made, the Contractor shall refund or pay the Owner all moneys that the latter may be compelled to pay in discharging such lien or claim including all costs and reasonable expenses.

28. DISPUTE RESOLUTION:

The Board and the bidder shall make every effort to resolve amicably, by direct informal negotiations, any disagreement or dispute arising between them in connection with the contract. However, in case of failure of negotiation, the matter shall be referred to Conciliation Committee. Neither party shall have the right to commence Arbitration to resolve any dispute. All such disputes which could not be settled are subject to the jurisdiction of Courts at Kujang, Jagatsinghpur District OR Honourable High Court of Odisha, Cuttack.

SCOPE OF WORK & TECHNICAL INFORMATION

Name of the work: "Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually."

The contract involves dredging of 4.14 Million M^3 quantity from Approach Channel, Entrance Channel, Turning Circles & Docks of Paradip Port Authority annually within a period of 06 months from 01st May to 31st October of each year from the year 2027-28 to 2029-30 and extendable further at the discretion PPA till completion of annual contract quantity without levying penalty.

1. PERIOD OF CONTRACT:

The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. The earmarked dredger shall be compulsorily carrying out dredging from 01st May to 31st October in each year (i.e. for a period of 06 months in a year) and shall continue dredging as per availability of quantity till the extended period (if any). Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

2. DEPLOYMENT SCHEDULE:

i) Every year, the Contractor shall deploy by 1st May of the year, at least 01(one) no. of Trailer Suction Hopper Dredger (TSHD) of minimum Hopper capacity of **8000**M^3 & must be Capable of dredging up to a depth of 30 Mtrs. from the sea level.

N.B: The dredger deployed/ substituted by the contractor meeting to the Technical Specifications as per the tender shall be regarded as earmarked dredger.

ii) The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. The earmarked dredger shall be compulsorily carrying out dredging from 01st May to 31st October in each year (i.e. for a period of 06 months in a year) and shall continue dredging as per availability of quantity till the extended period (if any). Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

iii) There are on an average of 14 shipping movements carried out in a day, which uses Entrance channel and Approach channel. VTMS &Port Control are available to control/ monitor the shipping movements as compatible with the dredging operation. The Dredger may contact for scheduled/ ongoing shipping movements.The Dredger(s) will be allowed for one hour dredging in the channel in between shipping movements on 24x7 basis. Accordingly, dredger will follow the incoming & outgoing vessels or the dredger may choose suitable alternate areas to avoid loss of dredging time during the congestion by shipping movements/Bad-weather as per instructions of PPA.

iv) The materials to be dredged in following areas are sand and silt. The details of dredging depth, dimensions and Annual quantity 4.14 Million Cum (area wise) plus any additional silted/variation

quantity due to cyclone/Depression/low pressure/bad weather/ or any other to be dredged in each year are as follows:

Sl. No.	Areas to be Dredged		Dimensions (Sq.Mtr.)	Depth Below Chart Datum (CD) (Mtr.) (Design Depth)	Quantity to be Dredged
1.	**APPROACH CHANNEL (AC)** (from 0 KM to 12.0 KMs.)		12000 M. X 300 M.	-21.2 M.	2.41 M.Cu.M
2.	**ENTRANCE CHANNEL (EC)** (around 900M. eastwards from North Breakwater i.e. 1100 M. to 2000 M & varied width from 240Mtrs. to 300Mtrs.)		900M. X 270M.(avg.)	- 19.8 M.	0.55 M.Cu.M
3.	**TURNING CIRCLES** (ITC alongwith approaches to WD & OTC alongwith IEC) [ITC- Dia. 520 M. OTC- Dia. 600M. IEC (Length-: 1100Mtrs. (From 0M. to 1100M.) & Avg. Width -: 300Mtrs.]		(i) **Inner Turning Circle (ITC)** -: Dia.: 520 M. (ii) **Outer Turning Circle (OTC)** -: Dia.: 600 M. (iii) **Inner Entrance Channel(IEC) –** (1100M.x300M.)	- 19.8 M.	0.37 M.Cu.M
4.	**Docks**	Central Dock East Dock South Dock Complex North Dock Complex Western DOCK North Oil Jetty(NOJ) South Quay	750 M. X 235 M. 700 M. X 240 M. 750 M. X 350 M. 1000 M. X 270 M. 560M. x 263 M. 360M. X150M. 270M. X 50M.	- 15.0 M. - 16.0 M. - 17.1 M. - 17.1 M. - 19.8M. -17.1M. -12.5 M.	0.81 M.Cu.M
				T O T A L :	4.14 M Cu.M
5.	**Any siltation quantity due to Cyclone/Depression/Low-pressure/ bad weather** Proportionate extension of time shall be provided without imposing any penalty / LD for dredging of the additional silted/variation quantity (if any) and Work Order for the same shall be issued at same rates, terms & conditions of the existing contract at-least 15days prior to 31st October 2026.				At same rates, terms & conditions of the existing contract.

N.B: The lay out of all the above dredging areas alongwith Dumping Ground has been annexed at **Appendix-XIII** .The dimensions mentioned in the table above are approaximated. For Accuracy, the details(Co-ordinates/.dg2 files/.dwg files) of the dredging limits of all the dredging areas will be provided well before commencement of the dredging work. Besides the above dredging areas, dredgers may be instructed to dredge over the slope areas (1:3 for TC & Docks & 1:5 for AC &EC w.r.to design depths). The above design depths are subject to a tolerance of depth upto +0.2 metre.

v) The dredged materials are to be dumped in sea at designated dumping ground. The dumping ground is located north side of the channel about 4 to 6 nautical miles from the dredging area. The

positions indicated in the chart will be supplied. The geographical coordinates of Dumping ground are as follows

A	Lat. 20 deg 16.65' N	Long. 086 deg 44.147" E
B	Lat. 20 deg 18.30' N	Long. 086 deg 45.67' E
C	Lat. 20 deg 16.65' N	Long. 086 deg 44.67' E
D	Lat. 20 deg 15.05' N	Long. 086 deg 47.57' E

3. <u>SPECIFICATION OF DREDGER(S):</u>

Specifications of the Dredger used for maintenance dredging are as follows:

(a) The Contractor shall deploy 01 (one) Trailer Suction Hopper Dredger (TSHD) of minimum Hopper capacity **8000 M^3** & must be capable of dredging up to a depth of **30 Metres** from the Sea water level, fitted with twin screw with bow thrusters (independent of dredging system) and adequate engine power for positioning herself to carryout maintenance dredging of Channels, harbour, jetty face & Docks and the site exposed to sea and swell conditions in monsoon months/off-monsoon months. All above machineries to be maintained in good operational condition throughout the contract period.

(b) It should have jet pumps in good condition to produce minimum jet pressure of 5 bars for maintenance dredging during the dredging of above areas.

(c) It must be fitted with modern dredging and position fixing equipment such as Drag Head Level Indicator, Jet Pumps indicator, Dredge pump indicator, Draft Load Monitor Indicator (DLM) with paper chart, Echo sounder, Electronic position fixing system (DGPS/RTK) for display & recording the dredging track.

(d) It should have efficient Dredge position control monitoring system consisting of DGPS, Real time depth monitoring system (Pre-dredge depth , post- dredge depth including tide and excluding tide w.r. to chart datum (C.D.) in color matrix & necessary software capable of being loaded with survey data(precision of 1mx1m grid soundings or higher in color matrix) like Hypack or similar software.

(e) DLM software shall display the real-time draft, displacement& Hopper volume of the vessel as per Draft Displacement of Hydrostatic table of the dredger. The DLM printouts(hard copies) shall be taken at three instants for a Load i.e. just before dredging, after dredging & also just before dumping. The DLM data in printout formats shall be inspected by the Port representatives/Liaison officer onboard & jointly signed (Port reps. & contractor/ dredger's rep.)copies shall be referred for calculation volume of Dredged Solid Material & will be submitted to PPA's Office on the next day for billing purposes .

(f) Draft Load Monitor (DLM) should have valid Calibration certificate issued by any Classification Society of International Association of Classification Societies (IACS) member, failing which the firm shall have to submit DLM Calibration Certificate from any NABL accredited Laboratory. Valid DLM calibration Certificate must be submitted before commencement of the work and shall be valid throughout the contract period . In case of any major repair/ Maintenance or sensor replacement are made during the contract, then the firm have to submit the recalibration certificate before resuming dredging at the Port.

(g) It should have efficient de-hoppering / dewatering system. De-hoppering shall be carried out before dredging in each load.

(h) Preferably, the dredger should have system for shore pumping / rain bowing facility for recycle and reuse of dredged materials. Whenever PPA avails the facility, the rate of dredging cost will be determined on mutually agreed basis.

(i) Successful bidder is responsible to provide dredging data for online monitoring whenever required by PPA.

4. METHODS OF MEASURMENT FOR PAYMENT:

(a) MONITORING:

One Port Representative will stay on board the dredger(s) for guiding and monitoring the dredging activities during Maintenance dredging of Approach Channel, Entrance Channel, Turning Circles & Docks**.** PPA may arrange third party agency for monitoring & certifying the daily dredging production of the dredger and witnessing the hydrographic Surveys. Accordingly, Contractor shall have to provide Boarding, Accommodation and Service Boat to the said Port Representative and Third party agency, as and when required. Payment for dredging in this contract shall be based on the quantity (volume of Dredged Solid Material) removed from the sea bed of all dredging areas as mentioned in table under clause 2(iv) of Scope of Work & Technical Information above, measured through hopper based measurement (basing on DLM parameters).

(b) SOUNDINGS PROCEDURE

For the purpose of taking of soundings, survey launch which is equipped with Multi Beam echo sounder having digital display & recording in Pen drive with DGPS & Motion sensor (Heave Compensator) will be provided by the PPA free of charges for all pre, progressive and post dredge surveys, if required. In case of any emergency / unavailability of the Port Survey Launch, Contractor's survey Launch may be used for the joint surveys, if required.

Sounding sorting of Grid 1mx1m actual in Hypack TIN model shall be considered from the edited soundings of Multi-beam Echo sounder raw data.

Intermediate soundings will be considered for ascertaining the depth. The program of dredging as approved by the Deputy Conservator or his Representative will be followed for the work. All volume calculations towards the assessment of availability of sufficient silted quantity/ layer thickness in the dredging areas will be ascertained from the joint hydrographic survey -TIN (1mx1m) grid (actual) soundings using advanced channel design/ TIN modelled volume in Hypack software or as suitable to PPA.

(c) HYDROGRAPHIC CHART

For the purpose of Pre, intermediate & Post survey, Hydrographic Survey lines along the length of the Channel with line spacing of 20m. or 40m. or as suitable to PPA, acquisition of raw soundings & post processing will be carried out by using Hypack max & Hysweep software for Multi-beam echo-sounder raw data. Raw soundings will be converted to the edited soundings after applying the tides and drafts correction alongwith suitable filters [Beam Angle-: 45/45 or 60/60, Offsets as per the 100% coverage of the data] or as suitable to PPA. Sounding sorting of Grid 1mx1m actual in Hypack TIN model program shall be considered from the edited soundings of Multi-beam Echo sounder raw data. Charts are to be prepared in the scale as per the requirement and shall be constructed on UTM or WGS-84. The soundings will be taken to 1st decimal of meter and reduced to the Chart datum by deducting the tides collected from the Port Tide gauge. Sound velocity will be measured & applied to the survey system before survey with Multi-beam echo sounder. All volume calculations towards the assessment of availability of sufficient silted quantity/ layer

thickness in the dredging areas will be ascertained from the joint hydrographic survey -TIN (1mx1m) grid (actual) soundings using advanced channel design/ TIN modelled volume in Hypack software or as suitable to PPA.

(d) FORMULA FOR HOPPER MEASUREMENT

$$\mathbf{V_{DS}} = T_{DS} / d_M.$$

Where $$T_{DS} = \frac{[T_H - (V_H X d_W)] \times d_M}{(d_M - d_W)}$$

So, $$\boxed{\mathbf{V_{DS}} = \frac{[T_H - (V_H X d_W)]}{(d_M - d_W)}}$$

Where V_{DS} = Volume of Dredged Solid material.
T_{DS} = Tonnes of Dredged Solid material.
D_W = Density of sea water=1.025t/m^3 (or gm/cc).
d_M = Wet Bulk density of dredged solid materials.
V_H = Volume of the Hopper load.
T_H = Tonnes of the Hopper load.

N.B: Reading of DLM (Draft Load Monitor) during after dredging & before dumping shall be compared with draft page of DLM as per Hydrostatic table for authentication. DLM Load reading or draft displacement as per Hydrostatic table before dumping whichever is minimum will be considered as Hopper load (T_H).

The Wet Bulk density of Dredged Solid Materials (d_M) for different dredging areas which shall be applied for calculation of quantity of dredged solid material (in M^3) for payment throughout the contract along with its extension (if any) are as follows:

(i) Approach Channel-:1.821 t/m^3,
(ii) Entrance Channel-:1.828 t/m^3,
(iii) Turning Circles -: 1.824 t/m^3,
(iv) Docks/SQ/NOJ -: 1.630 t/m^3.

Before Commencement of the Dredging at the Port, the DLM installed at the dredger shall be inspected/ verified by PPA representatives as per Hydrostatic Table of the dredger & Emptyship calibration shall be done jointly with dredger/contractor representative. DLM Load graph page along with all parameters (Draughts, Displacement, Emptyship, Hopper Load, Hopper Volume, Sea-water density, Density of dredged solid material, TDS &Trim tank condition-load/Volume etc.)of each load before dredging, after dredging & before dumping shall be printed out at steady position (standby position/ least speed/almost steady heading) of the dredger by the onboard Port representative/Liaison Officer in coordination with Dredger Representative considering the average value of TDS in case of fluctuation and jointly signed by the on board Dredger Representative& Port representative. Daily dredging report signed by the Port representative & Dredger Representative shall be produced by the Contractor next day. Duplicate copy shall be attached with the bill for making payment. Dredging Track record shall be printed for each load and submitted by the contractor next day along with daily dredging report as and when required. If any variation in DLM parameters w.r.t. physical parameters & hydrostatic table is observed then recalibration of Emptyship is to be carried out as when required. During this calibration, the finalized DLM parameters e.g. Sensors (Draught sensors& Volume sensors) offsets values shall be printed out for Port rep's reference and shall be kept unchanged till next

calibration. During dredging period, the onboard Port representative has the right to check/assess these set of values of different DLM parameters and can ask for printout copies of the same. If any discrepancy is observed during this checking, then that load will be considered as manipulated and will be cancelled.

On daily basis, the emptyship will be revised as per the daily consumption of Fresh Water & Bunkers/Fuels . For this, the dredger representative/ contractor shall have to produce the daily utilization /consumption report certified by Chief Engineer/ Master of the dredger to the onboard representatives on daily basis. If the port representative(s) want , can authenticate these consumption status and its measurement procedure (Oil tanks & FW tanks soundings report) on daily basis.

(e) Payment will be made only on hopper measurement volume of Dredged Solid Material calculated by the formula at clause No. 4(d) of **Scope of Work & Technical Information** above using the DLM data during before dumping or after dredging whichever is minimum signed by Port representative onboard & Dredger Representative. For this calculation, the hopper must be in fully filled condition up to its maximum level during after dredging and before dumping.

(f) During before dredging, DLM prinouts need to be taken in suitable condition of hopper i.e. Load, Volume & quantity (inM3) shown on DLM should match as per the formula at clause no.4(d) of **Scope of Work & Technical Information** above . If any residual quantity remained in the hopper is noticed by Port representative just at before dredging, then the residual amount of TDS quantity (ton or m^3) will be deducted from the TDS quantity (ton or m^3) calculated at the time of before dumping/after dredging. The net quantity after this adjustment (deduction of the residual quantity) shall be treated as final quantity for payment.

(g) <u>PRICE VARIATION OF POL PRODUCTS:</u>

Since there is a risk of price fluctuation of POL products on account of Central / State Government legislature etc., the price of fuel can be upward or downward depending on the movement of price about an agreed index and the formula for calculating the variation in price of POL will be as follows:

$$\mathbf{V= 0.85XQXWX(P-P_0)/P_0}$$

Where V= variation in price on account of fuel during the month under consideration.

P_0= Market rate of diesel/fuel 15 days prior to the last date of submission of Bid.

P= Market rate of diesel/fuel during the month under consideration.

Q = Percentage of diesel/fuel= **0.25** (considering 25% of the Work done value as fuel factor)."

W = Value of Work during the month under consideration.

The extra cost due to increase of fuel price will be reimbursed to the contractor on monthly basis after issuance of Work done certificate for the month by PPA. This escalation will be applicable on the price of fuel prevailing from day of commencement of work till date of completion considering P_0 = Market rate of diesel/fuel oil 15 days prior to the last date of submission of bid.

The monthly price of fuel will be considered as per the average of the rates as per the Price Circulars issued by IOCL or any other Govt. PSU supplying the fuel. Also, the Contractor is required to submit other details like actual bunkering reports certified by the supplier (bearing data on date of bunkering, amount of bunkering received, payments made against these etc.) on real time basis to PPA.

The benefit of reduction in fuel prices, if any, shall be passed on to the PPA.
N.B: The units for the Fuels will be considered as per the suitability i.e. KL or MT.

5. RATES AND AMOUNTS INCLUDE ALL CHARGES:

The rates and amounts submitted by the bidder shall be gross rates and amounts inclusive of all State/Central taxes & duties and Mobilization / De –Mobilization except GST. GST shall be paid at the prevailing rate. Any new tax that may be levied during the execution of contract will be reimbursed by Paradip Port. During the pendency of contract amount for variation in the rate of taxes only will be adjusted in either way, for the same, the base date will be taken as 15 days prior to the date of submission of the bid.

6. OFFICER IN CHARGE:

The entire work shall be carried out under the supervision of Senior Hydrographic Surveyor / Hydrographic Surveyors. The Contractor shall execute, complete and maintain (if specified) the work in strict accordance with the contract to the satisfaction of the Deputy Conservator and shall comply with and adhere strictly to the Deputy Conservator's instructions and directions on any matter (whether mentioned in the contract or not).

7. DAMAGE TO PERSONS AND PROPERTIES:

The contractor shall indemnify and keep indemnified the Board against all losses and work and against all claims, demands, proceedings, damages, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

8. ACCIDENT OR INJURY TO WORKMEN

(a) The Board shall not be liable for or in respect of any damages or compensation payable at Law in respect or in consequence of any accident or injury to any workmen or other person in the employment of the contractor or any sub-contractor and his agent or servants and the Contractor shall indemnify and keep indemnified the Board against all such damages and compensation and against all claims, demands, proceedings, costs, charges and expenses whatsoever in respect thereof or in relation thereto irrespective of the fact whether the Board or the contractor is liable for the same at Law.

(b) The contractor shall insure against such liability with an insurer approved by the Board (which approval shall not be unreasonably withheld) and shall continue such insurance during the whole of the time that any persons are employed by him on the work and shall furnish to the Dy. Conservator such policy of insurance and the receipt of the payment of the current premia when required.

9. DEFAULT OF CONTRACTOR IN COMPLIANCE:

In case of default on the part of the contractor, the Deputy Conservator shall be entitled to deploy and pay other persons to carry out the same and all expenses consequent thereon or incidental thereto shall be borne by the contractor and shall be recoverable from him by the Board or may be deducted by the Board from running bills due or which may become due to the contractor.

10. CLEARANCE OF SITE ON COMPLETION:

On the completion of the work, the contractor shall clear away and remove the dredger(s) and other plant, material and temporary works of every kind from the port premises. Rent and other charges for acceptance of port premises will be charged at SoR of PPA.

11. CARE OF WORKS:

From the commencement to the completion of the work, the contractor shall take full responsibility for the care of dredger(s), its staff and his other employees in connection with the work thereof and in case any damage, loss or injury shall happen to the dredger(s) or to any part thereof or to any temporary work from any cause whatsoever he shall at his own cost repair and make good the same

so that the work shall be completed in good order and in conformity in every respect with the requirement of the contract and the Dy. Conservator's instructions.

12. FOSSILS ETC.

All fossils, coins, articles of value or antiquity and structures and other remains or things of geological or archaeological interest discovered during the work shall, as between the Board and the Contractor, be deemed to be the absolute property of the Board and the Contractor shall take reasonable precautions to prevent his workmen or any other persons from removing or damaging any such article or thing and shall immediately upon discovery thereof and before Removal acquaint the Dy. Conservator of such discovery and carry out the disposal of the same at the Dy. Conservator's orders and at the expense of the Board.

13. SUPPLY OF PLANT, MATERIALS AND LABOUR:

Except where otherwise specified the contractor shall at his own expense supply and provide the dredger(s) / dredging equipment and other temporary works, materials, labour (including the supervision thereof) transport to or from shore and in an about the work and other things of every kind required for the execution and completion of the work.

14. REMOVAL OF IMPROPER WORK AND MATERIALS:

The Deputy Conservator or his representative shall during the progress of the work have power to order in writing from time to time:

(a) The removal from the site, within such time as may be specified in the order, of any materials, which, in the opinion of the Dy. Conservator or his representative, are not in accordance with the contract.

(b) The substitution of proper and suitable instruments; and

(c) The removal and proper re-execution of any work which in respect of depth and quantity is not in the opinion of the Deputy Conservator or his representative in accordance with the contract.

15. PLANT, TEMPORARY WORKS AND MATERIALS ETC. EXCLUSIVE USE FOR THE WORKS:

(a) The dredger(s) and other plant, temporary works and materials provided by the contractor shall, when brought on to the site be deemed to be exclusively intended for maintenance dredging work and completion of the work and the contractor shall not remove the same or any part thereof (save for the purpose of moving it from one part of the site to another) without the consent in writing to the Dy. Conservator.

(b) Removal of Plant etc.

Upon completion of the work for the year, the contractor shall with the permission of the Dy. Conservator, remove from the site, the said dredger(s) and other plant and temporary works remaining thereon and any unused materials provided by the contractor.

(c) Board not liable for damage to plant etc.:

The Board shall not at any time be liable for the loss of or injury to any of the said dredger(s) and other plant, temporary works or materials. All repair works arisen due to any cause whatsoever will be to the cost of the contractor.

(d) Re-export of Plant:

In respect of the dredger(s) and other plant which the contractor shall have imported for the purpose of the work, the Board shall not be responsible to the contractor for the re-export of such constructional plant by the contractor upon the removal thereof as aforesaid.

(e) Customs & DG Shipping's Clearance:

The Board shall not be responsible to the contractor where clearance is required by the Customs or DG Shipping for bringing the dredger(s) and other plant, material and other things

required. However, recommendation letter for above purpose will be issued if requested by the Contractor without any liability to PPA.

16. <u>OFFICIAL SECRETS:</u>

(a) The contract involves an obligation of secrecy, and the contractor, his agents, servants or sub-contractors or their agents or servant shall observe and comply with the requirement of the Indian Official Secrets Act 1923, and the rules there under or any statutory modifications or re-engagement thereof. Any breach of this clause shall constitute a breach of the contract.

(b) <u>Drawings and photographs of works</u>

The contractor shall not disclose the details of drawings and sounding charts prepared by him and of work on which he is engaged without the approval of the Dy. Conservator. No photographs of the Port area shall be taken or permitted by the contractor to be taken by any of his employees without the approval of the Competent Authority and no such photographs shall be published, or otherwise circulated without the approval of the Dy. Conservator.

Section-IV

SPECIAL CONDITIONS OF CONTRACT

1. BID SUBMISSION PROCEDURE:

The bidder shall submit the bids on line; no manual bids shall be accepted.

2. TENDER FEE & EMD:

The bidder shall deposit the tender fee and EMD online as specified in the e-Tender Call Notice through National Electronic Fund Transfer (NEFT)/Real Time gross Settlement (RTGS) only in favour of PARADIP PORT AUTHORITY as details mentioned in e-TCN.

OR

The bidder may submit the EMD in shape of Demand draft / Banker's cheque / e-Bank Guarantee**(e-BG)** from any of the commercial / scheduled Banks having validity period of 45 (Forty-Five days) beyond the final bid validity period i.e. 135 days from the last date of submission of bid as per the attached format at **APPENDIX–VI**. Also the Acknowledgement receipt of the original **e-BG** for the EMD shall be uploaded in the first cover, otherwise the bid shall be rejected.

OR

The bidder may submit the EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma as per **APPENDIX-VI(A)** of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA within 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**

N.B: The exemption towards submission of EMD and tender Fee shall be considered for the bidders those who have been registered with NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum) on submission (Uploading) of certificate in the first cover at the time of bidding.

The bids of firms, those are found neither submitted Tender Fee and EMD nor Exemption Certificate in the first cover, shall be rejected.

3. GATE PASS:

Gate passes for men & materials will be provided to the Contractor as per Port Rules on payment of applicable charges.

4. OFFICER IN CHARGE:

The entire work shall be carried out under the supervision of Senior Hydrographic Surveyor / Hydrographic Surveyor(s)/Asst. Hydrographic Surveyor(s)/ Asst. Surveyor(s). The Contractor shall execute, complete and maintain (if specified) the work in strict accordance with the contract to the satisfaction of the Deputy Conservator and shall comply with and adhere strictly to the Deputy Conservator's instructions and directions on any matter (whether mentioned in the contract or not).

5. BID EVALUATION:

The tender shall be evaluated on the basis of submitted documents and total quoted amount in "Bill of Quantity" excluding the GST.

6. PERIOD OF CONTRACT AND PAYMENT:

(i) The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

(ii) Payment will be made basing on Hopper-measurement volume of dredged solid material as per DLM data using Hopper Measurement formula mentioned in the Scope of Work on monthly basis.

(iii) In case, the actual dredged quantity by the dredger(s) during the period from 01st may to 31st October in a year is less than 3.30 Million M^3 only due to non- availability of sufficient silted quantity in the dredging areas**.** Minimum guaranteed payment will be made to the contractor for 3.30 Million M^3 subject to no L.D. is levied for any month during May to October in the year. In case of L.D. levied for the months during the period (May to October) in a year, Minimum Guaranteed Quantity of 3.30 Million M^3 shall be reduced @ 0.55 Million M3 per month in which L.D. is levied. The lowest rate among all dredging areas as per the Work Order will be applied to the difference between the reduced Minimum Guaranteed Quantity and actual dredged quantity.

[Example: If L.D.s are applicable for 02(two) months out of 06(six) months in a year, then reduced Minimum Guaranteed Quantity for payment shall be 3.30 Million M3-(2x0.55 Million M3)= 2.20 million M3.]

(iv) No claim from a contractor shall be entertained after lapse of 3 years from the date of arising the claim.

7. IDLING HOURS FOR THE DREDGER:

(i) The Deputy Conservator, PPA may permit the dredger to remain idle in case of Unavailability of Sufficient silted quantity* in any of the dredging areas except unapproachable areas (un- approachable due to berth occupancy by vessels/ crafts/ dredgers or any other reasons) assessed through the joint check survey carried out on the subsequent survey day as per feasibility on a 02(two) days advance written request by the contractor.

*Unavailability of Sufficient silted quantity shall not be considered in any of the following cases:

(a) Any isolated patch where depth has been reduced more than 0.5m from the designed depth in any dredging area as per the survey soundings (1x1 grid from the Multibeam data)

(b) An average layer thickness (Volume above / Area above) of 0.2 metre or more in an dredging area (Full area upto its dredging limit in case of any Dock & EC, individual Turning basins along with their adjacent areas upto dredging limit in case of TCs, and a target area of 2000Mx300M as per the predefined chainages in case of AC) as per Advanced Channel Design / TIN modelled Volume in Hypack Software or as suitable to PPA.

N.B: Refer Table in clause No.2 (iv) of Scope of Work for dredging limits of different dredging areas.

However, dredger(s) can't be allowed to be remained idle due to unavailability of sufficient silted quantity until a joint check survey is carried out for assessment of availability of sufficient silted quantity.

(ii) When the dredger is permitted by Dy. Conservator, PPA to remain idle due to non-availability of sufficient silted quantity, the dredger must be in readiness to resume dredging within 02(two) hours' notice from PPA, failing which the dredger shall be taken as idle due to Breakdown on the account of the dredger from the time of given notice from PPA till the resume of dredging.

8. SECURITY DEPOSITS & SIGNING OF AGREEMENT:

(a) PERFORMANCE SECURITY DEPOSIT (PSD):

The selected firm shall have to submit the Performance Security Deposit within 30 days from the date of issue of Letter Of Acceptance (LOA):

A sum of 10% of contract value of the tender shall be deposited by the successful tenderer (Contractor) as Performance Security Deposit (PSD) in shape of Demand draft / Banker's cheque / e-Bank Guarantee**(e-BG)** issued by any scheduled Bank as per prescribed format as per **APPENDIX – VII.**

OR

Performance Security may be furnished in the form of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma of Paradip Port Authority.

The Performance Security Deposit in the format of Surety Bond/ Fixed deposit shall be as per format **APPENDIX –VII(A)**.

Validity of PSD e-BG:

The e-BG towards PSD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

Or

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

After authentication/ verification of the PSD (submitted in any of the formats above) by PPA, Work order will be issued.

The P.S.D will be released on satisfactory completion of the work.

Forefeiture Of PSD & Termination Of The Contract:

In addition to applicable L.D./Penalty, the **Performance Security Deposit (PSD)** of 10% of the contract value shall be forfeited by PPA in any of the followings:

(i) If the dredger is not deployed & has not commenced dredging within 30 (thirty) days from the scheduled date of commencement.

(ii) If the dredger remains non-operational /un-available for more than **30** days continuously during the contract period (01st may to 31st October in every year) for any reasons except declared bad weather, idle hours on Port account (if any) & idle hours due to non- availability of sufficient silted quantity as approved by the Deputy Conservator, PPA and if the contractor fails to replace the deployed dredger with similar / higher hopper capacity dredger within 30 days from the start date of non-operational /un-availability.

In such cases, in addition to forfeiture of all Security Deposits, The Board of PPA reserves the right to terminate the contract and debar the firm for a period of 02(two) years from participating in any tender of Paradip Port Authority & engage suitable dredger at the risk and cost of the contractor to complete the remaining work.

(b) <u>EXTRA ADDITIONAL SECURITY DEPOSIT (EASD) & ITS CALCULATION:</u>

Over and above the E.M.D., tenderer quoting more than 15% below the estimated cost of work put to tender shall have to pay an 'Extra Additional Security Deposit' (E.A.S.D) separately. E.A.S.D. wherever applicable will be collected from the successful bidder along with the performance Security Deposit (PSD) after issuing the Letter of Acceptance (LOA). Back-out from the offer by the participating bidder after opening of Technical Bid (in case of two stage bid) or price bid (in case of single stage bid) OR non-deposit of EASD by the successful bidder will liable for forfeiture of EMD and suitable action shall be taken up against the bidder as per decision of competent authority of PPA. EASD may be accepted in form of Demand Draft/Bankers Cheque/E-bank guarantee/ Fixed Deposit/ Insurance Surety Bond as per the format at **APPENDIX_VIII / VIII(A**) in favour of Paradip Port Authority (refer to beneficiary details attached to e-BG format) and must be drawn on any scheduled Commercial Bank / Insurance company / online payment.

Extra Additional Security Deposit (E.A.S.D) = $\frac{A}{100}$ x Estimated cost of work put to tender

Where A = Percentage rebate quoted on the estimated cost of work put to tender by the tenderer minus 15 (Fifteen).

Example: If the tenderer desires to quote percentage rebate 25% (Twenty-five) percent, then the Extra Additional Security Deposit (E.A.S.D) shall be worked out as under.

E.A.S.D Amount = $\frac{(25 - 15)}{100}$ x estimated cost of work put to tender.

Note: (i) The e-BG towards EASD shall be valid for 02 months beyond the contract period i.e. till 31st December 2029 and subsequently be extended up to actual completion plus 02(two) months in case of extension of the contract period.

Or

The e-BG shall be submitted initially with validity upto 31st December 2027 and subsequently extended on annual basis i.e. upto 31st December 2028 & 31st December 2029 and upto actual completion plus 02(two) months in case of extension of the contract period.

(ii) The E.A.S.D will be released on satisfactory completion of the work.

<u>Forfeiture of EASD :</u>

E.A.S.D. will be forfeited and the firm will be debarred for a period of 2yrs from participating in any tender of PPA, if the contractor fails to execute the work as per the Scope of the Work.

(c) CONDONATION PERIOD:

If the Contractor fails to submit the PSD & EASD by scheduled date, then the following conditions shall be applicable:

(i) The delay condonation will be for a period of 15 days beyond scheduled date as mentioned in Letter of Acceptance (LoA), at the written request of the Contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG of 5% over the original (as per LoA) security deposit / e-BG value.

(ii) The above period can be further extended for another 15 days at the written request of the contractor on genuine grounds acceptable to Port with an additional security deposit / e-BG of 10% over the original (as per LOA) security deposit / e-BG value which shall be in addition to above 5% (i.e. total 15% extra over the original Security deposit/e-BG value).

If the Contractor fails to deposit EASD / PSD even within the extended period of 30 days after the scheduled date as mentioned in Letter of Acceptance (LOA), his bid shall be summarily rejected and the bidder will be debarred from participating PPA tenders for a period of 02 (two) years apart from forfeiting his tender EMD. In case of Exemption certificate against EMD submitted by the contractor, the issuing authority of Exemption Certificate shall be notified to take necessary action as deemed fit against the firm.

(d) SIGNING OF AGREEMENT: The tenderer, whose offer has been accepted shall execute an agreement with PPA on aRs.100/- non judicial stamp paper in the prescribed format [as per **Appendix-XII**] within 7 days from the date of issuance of work order. All the expenditure in connection with signing of agreement shall be borne by the tenderer.

After the receipt of the Performance Security Deposit(PSD), Extra Additional Security Deposit(EASD) – if applicable & Signing of the Agreement, EMD of the successful bidder will be refunded to the bidder.

9. LIQUIDATED DAMAGES (L.D.):

(i) Liquidated damage (LD) shall be imposed at the rate of 0.15% of contract value per day or part thereof for the delay in deployment of the earmarked dredger upto 10(ten) days beyond scheduled date of commencement. If the earmarked dredger is delayed beyond 10(ten) days, then L.D. shall be imposed at the rate of 0.30% of the contract value per day or part thereof w.e.f. 11th day.

(ii) Liquidated damage (LD) shall be imposed at the rate of 0.15% of the contract value per day or part thereof, if any ear-marked dredger remains non-operational/unavailable for more than 06(six) days cumulatively in a calendar month(May to 47ctober in each year) except declared bad weather, idle hours on Port account (if any) & idle hours due to non- availability of sufficient silted quantity as approved by the Deputy Conservator, PPA,. Storm Signal of LCS-III or above hoisted at this port will be considered as bad weather in addition to any other period declared as bad weather by the Deputy Conservator, PPA.

(iii) Minimum 5.5 lakhs Cu.M of Solid material shall have to be dredged in each calendar month from 1st May to 31st October in each year subject to availability of silted quantity, failing which Liquidated Damages (L.D.)/ Penalty shall be imposed @20% of the dredging cost of the shortfall quantity @ lowest rate among the dredging areas as per the work order.

(iv) The Dredger(s) must have Bow-Thruster (independent of dredging system) in working condition during dredging of Channels/Docks / Berth-face failing which cost of 2% of the dredged quantity during non-operational of bow thruster shall be deducted as Liquidated Damage (L.D).

(v) The Dredger(s) must have operational jet system (independent of dredging system) during dredging with minimum jet pressure of 05 bars, failing which cost of 2% of the dredged quantity during the non-operational of Jet system shall be deducted as Liquidated Damage(L.D).

(vi) The cumulative Liquidated Damages (L.D) to be limited to 10% of the contract value on account of (i) Delayed deployment of dredger(s) (ii) un-availability/non-operational for more than 06 days during the calendar month, (iii) Non-achievement of minimum target quantity of 5.5 lakhs CuM. (iv) non-operational of Bow-thrusters (v) non-operational of jet system. If the total LD exceeds 10% of the contract value, in such case, PPA reserves the right to terminate the contract with forfeiture of Performance Security Deposit (PSD) & engage suitable dredger at the risk and cost of the contractor to complete the remaining work.

N.B:-All volume calculations towards the assessment of availability of sufficient silted quantity/ layer thickness in the dredging areas will be ascertained from the joint hydrographic survey -TIN (1mx1m) grid (actual) soundings using advanced channel design/ TIN modelled volume in Hypack software or as suitable to PPA.

10. <u>DEPLOYMENT SCHEDULE</u>:

(i) Every year, the Contractor shall deploy by 1st May of the year, at least 01(one) no. of Trailer Suction Hopper Dredger (TSHD) of minimum Hopper capacity of **8000**M^3 & must be Capable of dredging up to a depth of 30 Mtrs. from the sea level.

<u>N.B:</u> The dredger deployed/ substituted by the contractor meeting to the Technical Specifications as per the tender shall be regarded as earmarked dredger.

ii) The contract period shall be for a period of 03 (three) years i.e. from 2027-28 to 2029-30. The earmarked dredger shall be compulsorily carrying out dredging from 01st May to 31st October in each year (i.e. for a period of 06 months in a year) and shall continue dredging as per availability of quantity till the extended period (if any). Each year the dredger(s) shall have to stay compulsorily for 06 months from 01st May to 31st October even if the annual contract quantity including additional quantity (if any) is achieved prior to 31st October of the year. However, minimum 15 days prior notice will be given for dredging of any additional quantity at same rates, terms & conditions.

11. <u>SUBSTITUTION OF VESSEL:</u>

The Contractor may substitute the deployed Vessel by a sister/ similar/ better Vessel during the contract period if required which will also be regarded as earmarked dredger as meeting to the Technical specification of the tender. The Contractor shall submit all details of the substitute Vessel and obtain the approval of the Deputy Conservator before deployment.

12. <u>FORE CLOSURE OF THE CONTRACT</u>

The contract is for 03(three) years, however PPA reserves the right to curtail or foreclose the contract (in whole or in part) at any time during its execution without assigning any reason by giving a minimum 90 (ninety) days advance notice to the contractor without any financial liability to PPA This clause will be effective after completion of the 01st year of dredging (01st May to 31st October of the year 2027)of the contract.

13. <u>TERMINATION OF CONTRACT:</u>

In case of any major breach of the contract agreement, Paradip Port Authority(PPA) shall terminate the Contract along with forfeiture of Performance Security Deposit (PSD)& Extra Additional Security Deposit (EASD) and debar the firm for 02 (Two) years from participating in any Tender of Paradip Port Authority. In such case, PPA reserves the right to engage suitable dredger(s) at the risk and cost of the contractor to complete the remaining work.

14. INTEGRITY PACT:

For this tender, the integrity pact agreement format as given at **Appendix – XIV** shall form a part of the tender document and shall be signed by the Purchaser and the Contractor. This work will be included in the Integrity Pact & accordingly will be entrusted to the Independent External Monitors (IEMs) for effecting transparency & maintaining quality. (1) **Shri Pramod Shripad Phalnikar, IPS (Retd.),** ' Sadbhav ' , Plot No. 15, Rhythm 1, Nanded City Township, Sinhagad Road, Pune.Mob.: 9011943674,(Email: pramodphalnikar@gmail.com.) and (2) **Shri Ramesh Narain Misra, Ex-CMD,SJVN,** Flat No. 6026,Pocket 8,Sector B, Vasant Kunj,New Delhi-110070 Mobile No. 9858111243, **E-mail: RNMISHRA1957@GMAIL.COM** & **MISRARAMESH@YAHOO.CO.IN** have been appointed as IEMs for Paradip Port Authority by CVC. All necessary coordination are to be provided to them as & when required.

The firm must download **APPENDIX-XIV,** Integrity Pact (IP) and upload same duly signed by the Authorize signatory along with the technical bids. **Any bid not accompanied by Integrity Pact duly signed by the bidder shall be considered as non-responsive bid and shall be rejected anyway.**

Successful bidder has to submit the Integrity Pact (IP) on an Rs.100/- non judicial stamp paper duly signed by the Authorize signatory of the firm at the time of the signing the contract agreement.

15. CONTRACTOR RESPONSIBLE FOR MATERIALS, LABOUR AND EQUIPMENT:

The contractor shall make his own arrangements for providing dredger(s), all equipments, routine boats, provision, fuel, power, consumable goods etc. together with sufficient quantity of spare parts for the efficient and uninterrupted execution of work. He shall also arrange for the supply and transport of all materials to the dredger(s) and all the labour required for the satisfactory execution and completion of the work. He shall employ competent persons with adequate qualifications and experience to man his craft in all shifts to ensure proper execution of the contract. The contractor shall not be provided any assistance by way of equipment or craft from the Board for carrying out the dredging work.

16. MARKING OF THE DREDGING AREA:

The Board shall provide Geographical co-ordinates, UTM coordinates and marking of the dredging area in the sounding chart. The contractor shall use his own accurate position fixing equipment.

17. PORT FACILITIES:

(a) Board will provide Pilotage & Towage service, berthing facility to the dredger(s) and other crafts of the Contractor as per the requirement of the Vessels. Except for emergency, atleast two days notice to be given for allotment of berth.

(b) Port Berths will be provided for maximum 02 days per month to the dredger(s) for bunkering, repair/ Maintenance works etc. subject to availability of Berths as per the Scale of Rates (SOR). The contractor may arrange private berth(s) on their own cost/arrangement if required.

(c) For the supply of fresh water to the vessels, at least 3 days notice is required to be given. Fresh water can be supplied from shore connection at SoR as per availability.

(d) The charge for the above services will be as per the scale of rate of the port and will be deducted from the monthly bill of the contractor.

18. ALLOTMENT OF ACCOMMODATION & LAND FOR STORING PURPOSE:

(a) Accommodation for Office, residence ashore for the staff and land for storing materials, tools and working yard, if available will be provided on payment of prescribed rent and PPA rules till completion of the work , the same will have to be vacated on one week's notice if required by the Board. But the land must be restored to its original conditions before handing it over to the Dy. Conservator on completion of the contract.

(b) Details of erection of all temporary structures and plant on the Port land shall have the prior approval of the Dy. Conservator, PPA such structures shall be of non-inflammable materials as approved by the Dy. Conservator.

19. NAVIGABLE CHANNEL TO BE KEPT FREE:

Throughout the period of the contract, the contractor shall ensure that the work is carried out without causing any obstruction or interference to the normal traffic in the Harbour. The contractor's craft and personnel shall at all times adhere to the established rules of the Port and comply with any directions in respect of navigation in the Harbour that may be issued from time to time by the Dy. Conservator.

The dredger(s) will be available for VHF contact on channel 16/06 at all times during its working hours and dredging operations may be stopped by the Dy. Conservator if the dredger(s) does not respond to calls on VHF (Channel 16/06) by the Signal Station, Harbour Master, Pilots on duty. This stoppage of work will not count towards idle time charges or extension.

20. CUSTOMS DUTY:

The contractor will have bear all customs duties in case of the dredger(s), plant &machineries for the work are required to be imported.

21. WIRELESS COMMUNICATIONS:

The contractor shall arrange for wireless communications by means of suitable VHF equipment on board the dredger(s) for contacting Deputy Conservator / Harbour Master/Marine Surveyor/Pilots, Port Signal Station. The contractor shall use VHF channel 16 & 06 for contacting the Port officials and channel 09 for passing messages. He may also use mobile phones for contacting port authorities.

22. ACCIDENTS:

In the event of the occurrence of any accidents in connection with the execution of the work, the contractor shall inform the Deputy Conservator of the same immediately. He shall also report such accidents to all the competent authorities whenever such reports are required by them. In the event of any marine accidents, a report shall be made immediately to the Deputy Conservator.

23. ACCESS TO CONTRACTOR'S VESSELS' WORKS ETC.

Port representatives/Liaisoning Officers will be on board the dredger and will be relieved every 24 hrs. Apart from these, the Deputy Conservator or his representative shall have, at all times during working hours, access to the contractor's dredging craft, plant etc. and shall have the right to call for and obtain any information regarding the maintenance and operation of the dredger(s), progress of work etc. from the contractor or his representative. For making such visits to the dredger(s), contractor has to provide the routine boat. The expense towards departmental supervision on board the dredger(s) shall be borne by the Contractor., Suitable boarding facilities, accommodation at the dreger and service launch to go on board the dredger(s) for Porty department's representatives/ Port Representatives/ Liaisoning Officers shall be provided by the contractor at his cost and no reimbursement will be made by PPA for these facilities.

24. REMOVAL OF SUNKEN PLANT.

If in the course of the execution of the contract, any craft belonging to the contractor, or any person employed by him is sunk, the contractor shall forthwith and with dispatch raise and remove that plant or otherwise deal with it as will be directed by the Deputy Conservator. Pending the raising and removal of such plant, the contractor shall provide and fix such buoys and lights and take such other measures for the safety of navigation as may be required by the Deputy Conservator. In the event of the contractor not carrying out these obligations the Deputy Conservator may take steps to provide such buoys and lights (without prejudice to the right of the Board to hold the contractor liable) and the contractor shall refund to the Board all cost incurred in connection therewith. The fact that the sunken vessel, craft is insured or declared as a total loss shall not absolve the contractor from his obligation under this clause to raise and remove the same.

25. DISPUTE RESOLUTION:

The Board and the bidder shall make every effort to resolve amicably, by direct informal negotiations, any disagreement or dispute arising between them in connection with the contract. However, in case of failure of negotiation, the matter shall be referred to Conciliation Committee. Neither party shall have the right to commence Arbitration to resolve any dispute. All such disputes which could not be settled are subject to the jurisdiction of Courts at Kujang, Jagatsinghpur District OR Honourable High Court of Odisha, Cuttack.

APPENDIX-I

METEOROLOGICAL PARAMETERS

1. GENERAL

The work put to tender consists of the materials to be dredged are sand, silt and clay. The details of dredging depth and dimension of areas are mentioned at scope of work.

2. SITE CONDITIONS: The bidder shall visit, inspect and examine the site of work in order to familiarize himself with the site and local conditions and for obtaining information necessary for submitting proper and complete order.

The bidder shall also thoroughly acquaint himself with tidal conditions, variation of tides, tidal ranges, currents, swell, prevailing winds and weather, traffic and other conditions likely to affect the work, all costs and expenses that may be incurred by the bidder in connection with such investigation shall be borne by him. The Board accepts no responsibility whatsoever therefor.

However, with a view to assisting the tender, in getting an idea about the working conditions, the following information is given.

3.(a) TIDES

The mean tidal variation at Paradip Port is of the order of 1.9 metre at spring tides and 0.7 metre at neap tides. The spring tides occur at the time of the New Moon and Full Moon periods and the neap tides occur halfway between them.
The following tide levels refer to chart datum which is 1.54metre below.

Mean High Water Springs	+ 2.58 M
Mean Low Water Springs	+0.71 M
Mean High Water Neaps	+2.02 M
Mean Low Water Neaps	+1.32 M
Lowest low water	+0.20 M
Highest High water	+3.5 M

(b) Prevailing wind force and frequency:

The wind direction of Paradip coast during April to September, that is, during southwest monsoon season is predominantly from southwest. The wind speed during May to July is around 15 to 18 m/sec. And during August to September the wind speed is about 10 to 12 m/sec. The month of October is with variable wind direction and the wind speed is around 8 m/sec.
During November to February the wind direction reverses and predominantly from northeast. The wind speed is around 8 to 10 m/sec. The month of March is with variable winds similar to the month of October.

(c) Sea swell and currents :

The predominant wave direction from November to February is from north to northeast. The predominant wave periods are around 5 to 6 seconds and the wave height are low of the order of 0.5 to 1.0 m. The month of March and April are with variable wave direction and the wave periods are also varying between 5 and 8 sec and the wave height are low of 0.5 to 1.5m. During May to August that is during south west monsoon season the waves are predominantly from south to southwest and the wave heights are high in the order of 1.5 to 3.5 m and the range of the wave

period also increased to 8 to 9 sec with occasionally low period waves. The influence of the strong and persistent southwest monsoon is felt on the wave directions during September and October with the waves approaching from south and southwest. But the predominant wave heights are reduced to 1.0 to 2.5 m and wave period are around 5 to 7 sec.

The currents off Paradip are generally controlled by monsoon winds. The currents in general are in the NW-NE direction during January to September and SW direction during October-December. During the SW monsoon season the speed of the wind driven surface current varies between 0.1 to 0.4 m/sec. The currents generated by tide (Tidal current)are parallel to the coast during flood tide and offshore during ebb. The surface current speeds are in the order of 0.7 to 0.8 m/ sec but currents may even exceed 1 m/sec when the sea is rough in Bay of Bengal. The bottom currents recorded were of the order of 0.55 m/sec. But in general bottom currents were below 0.45 m/sec.

(d) **Influence of monsoon**: The south-west monsoon is mainly the rainy season. 70% of the rain falls during the months of June –September and the monsoon season is generally over by mid of September. The average rainfall is about 1480 mm.

(e) **Temperature and relative humidity**:
There is a steady increase in air temperature from February to May. May is the hottest month of the year with maximum day temperature 35° C. With the onset of south west monsoon by about the beginning of June the weather becomes progressively cooler. Towards the end of southwest monsoon season, the average day temperature crosses the 30° C mark, although nights become progressively cooler after the withdrawal of the monsoon. After November the day temperature also begins to decrease. January is generally coolest month of the year with lowest mean minimum temperature 12°C.

The relative humidity is moderate to high throughout the year with the mornings being more humid than the afternoons. With the onset of the southwest monsoon there is marked increase in the relative humidity which remains around 80-86% till October. The minimum relative humidity occurs in the months December to February.

(f) **Visibility**: The visibility conditions are generally good at Paradip Port.

(g) **Cyclones**: Paradip Port has experienced 3 major cyclones in October 1971, 3rd& 4th June 1982 and super cyclone 28th& 29th October 1999 with wind speed of 185 kmph, 167 kmph and 259 kmph respectively.

4. **Soil particulars and bed levels:**
Data regarding soil conditions in the areas to be dredged is sand, silt and clay.

APPENDIX-II

FORM OF TENDER

To

The Deputy Conservator,

Paradip Port Authority.

Having examined the general information and conditions of contract and having satisfied ourselves of the work to be carried out for "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",** we offer to take up the work.

1. We further undertake, if our tender is accepted, to deposit the Performance Security Deposit amount as mentioned in the tender document within 30 days from the date of receipt of Letter of Acceptance (LOA) in shape of E-bank guarantee or other modes as mentioned in the tender clauses as PERFORMANCE SECURITY DEPOSIT.
2. We further undertake, if our tender is accepted with a quoted rate more than 15% lesser than the Estimated Cost put to the tender, to deposit the Extra Additional Security Deposit(EASD) amount as mentioned in the tender document within 30 days from the date of receipt of Letter of Acceptance (LOA) in shape of E-bank guarantee or other modes as mentioned in the tender clauses as EXTRA ADDITIONAL SECURITY DEPOSIT.
3. We further undertake, if our tender is accepted we shall prepare and execute the agreement in the prescribed form within 07 days from the date of issuance of work order. Unless and until a formal agreement is prepared and executed, this Tender, together with your written acceptance thereof, shall constitute a binding contract between us.
4. We undertake to abide by our tender for a period of 90 days from last date of submission of bid or such extension of time as may be accepted by us and same shall be binding on us and you are entitled to accept the same at any time before the expiration of the said period.
5. We have transferred Tender Fee of Rs.11,800/- inclusive of 18% GST through RTGS / NEFT to Account No. 0254104000169615 in favour of Paradip Port Authority, Type of Account – SAVING, Branch: IDBI Bank Ltd., IFSC CODE: IBKL0000254.
6. We have transferred EMD of **Rs.10,27,57,035/-** inclusive of 18% GST through RTGS / NEFT to A/c. No.0254104000169615 of PPA maintained with IDBI Bank Ltd., Paradip.

OR

Confirm that we have submitted the copy of registration certificate from NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum)**in the first cover.**

OR

We have submitted EMD/ Bid security in the form of E-bank guarantee(E-BG)for **Rs.10,27,57,035/-** inclusive of 18% GST having validity period of 45 (forty-five) days beyond the final bid validity period, i.e. 135 days from the last date of submission of bid.

OR

We have submitted the copy of EMD/ Bid security in shape of Insurance Surety Bonds / Fixed Deposit Receipt for **Rs.10,27,57,035/-** inclusive of 18% GST having validity period of 45 (forty-five) days beyond the final bid validity period, i.e. 135 days from the last date of submission of bid.

We further agree that in the event our withdrawing of the tender before the final decision or in the event of our failing to deposit the Performance Security Deposit & Extra Additional Security Deposit(EASD) (if applicable) in the event our tender is accepted or failing to execute an agreement within prescribed time from the date of receipt of the order to commence the work, the deposit of EMD indicated above shall stand forfeited to the Port Authority.

7. We understand that you are not bound to accept the lowest or any tender you may have received.

Dated, Signature _____

In the capacity of _____ duly authorized to sign the tender for and on behalf of (name and address of the company/firm).

Witness 1 Signature _____

Address _____

Witness 2 Signature _____

Address _____

APPENDIX – III

TECHNO-COMMERCIAL INFORMATION

1. Name of the Bidder :
2. Name of the contact person :
   Present address with :
   Mobile No. :
   e-mail address :
3. Whether you accept all the terms and conditions of the contract mentioned in the tender documents : Yes / No
4. No deviation of the conditions of the contract or conditional offers is acceptable.

Signature of the firm's owner or Representative

APPENDIX – IV

ELIGIBILITY INFORMATION

"COVER -1 (Tender Fee &EMD Bid)"

Sl. No.	Description of Documents	Whether submitted (Yes/No.) & Ref. of page No.
1	Proof for submission of Tender Fee of Rs.10,000/- Plus 18% GST (Through RTGS / NEFT) **OR** Copy of registration certificate from NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi & Village Industries Board) / Coir Board/ MOMSME (Ministry of Micro, Small and Medium Enterprises)/ UAM (Udyog Aadhar Memorandum).	
2	Proof for submission of EMD for Rs.10,27,57,035/- incl. of GST@18%(Refundable) (Through RTGS/ NEFT) **OR** Copy of registration certificate from NSIC (National Small Industries Corporation) / MSE (Micro and Small Enterprises 2012) registered with District Industries Centre (DIC) / KVIC (Khadi & Village Industries Commission) / KVIB (Khadi& Village Industries Board) / Coir Board / MOMSME (Ministry of Micro, Small and Medium Enterprises) / UAM (Udyog Aadhar Memorandum). **OR** Proof for submission of EMD/ Bid security in the form of E-bank guarantee (E-BG) for Rs.10,27,57,035/- having validity period of 45 (forty-five) days beyond the final bid validity period, i.e. 135 days from the last date of submission of bid. **OR** The bidder shall upload the scan copy of EMD in shape of Insurance Surety Bonds / Fixed Deposit Receipt from Insurance company / Commercial Bank / online payment in an acceptable form safeguarding the Purchaser's interest in all respects in first cover. The insurance surety bond / fixed deposit to be executed on stamp paper of Rs.100/- in the prescribed Proforma[at APPENDIX-VI(A)] of Paradip Port Authority. **Also the original Insurance Surety bond** or **Fixed Deposit Receipt for the EMD/ Bid security shall be submitted to the Office of the Deputy Conservator, PPA wihin 07 (seven) days from the date of opening the technical bid, failing which the bid shall be rejected.**	

"COVER -2 (PRE-QUALIFICATION / TECHNICAL BID)"

Sl. No.	Description of Documents	Whether submitted by the Tenderer (Yes/No) & Ref. of page No.
1	Copy of PAN Card & GST Regn. Certificate to be enclosed.	
2	Scanned Copies of Audited Balance Sheet/ Profit & loss account/ Certificate from Chartered Accountant for last 03(three) years ending **31st March 2026** in support of annual turnover**.**	
3	Scanned Copies of Similar Job Completion Certificate mentioning the Work executed value, copy of work order or agreement having Date of Commencement, Date of Completion, Contract Value, Contact address of the organisation. Scanned copy of Original Work Orders and Original Work experience certificate with work executed value excluding GST of having successful completion of similar type of works during last **07 (seven) years** ending on 31st August 2026 should be either of the followings: (a) Three similar completed works each costing not less than **Rs.58,05,48,223/- (Rupees Fifty-eight crore five lakhs forty-eight thousand two hundred &twenty-three)only excluding GST.** (OR) (b) Two similar completed works each costing not less than **Rs.72,56,85,279/-(Rupees Seventy-two crore Fifty-six lakhs Eighty-five thousand two hundred & seventy-nine)only excluding GST.** (OR) (c) One similar completed work costing not less than **Rs.116,10,96,446/-(Rupees One hundred & sixteen Crores & Ten lakhs ninety-six thousand four hundred & forty-six)only excluding GST.** **Note:** **(i) "Similar works" means** Maintenance Dredging works/ Capital Dredging works of Approach channel / Entrance Channel/ Sea Shipping Channel /Harbour/River etc. (Copies of Work Orders/Contract Agreements and corresponding Work completion certificates or Performance certificates with work executed value to be submitted as proof). **(ii)** Scanned copy of Original TDS certificate must be furnished for the specified works submitted against similar work experience duly **certified by Chartered Accountant firm** supported by TDS Traces as per the enclosed format at **APPENDIX – XI** if the work experience submitted is issued by any private organisation.	

	(iii) If any firm is having running contract but partially completed period is meeting the above amount of eligibility criteria as on Dtd. 31st August 2026, then the firm can also participate in the tender. **(iv)** In case, if any firm submits the similar work experience from foreign firm, they must submit the TDS Traces as per the enclosed format at **APPENDIX – XI** / Certificate or exemption certificate from IT Department, Govt. of India.	
4	Power of Attorney on stamp paper in favour of person authorised to sign the tender document in suitable format issued by the competent authority should be notarised /signed by Advocate.	
5	Detailed information regarding current litigation in which the tenderer is currently involved. Else, NIL report to be submitted.	
6	At the time of submission of Bids, the tenderer should meet any of the following condition for deploying dredger for Maintenance Dredging at Paradip Port : **A)** *If the* Dredger *is in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid). i) The Dredger to be offered for the contract should meet the Technical Specification similar to specification mentioned in the Scope of Work. (Proof to be submitted as per format at **APPENDIX – V).** ii) To submit the Registration Certificate & other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, Insurance certificate etc (Copy to be submitted) for the proposed dredger(s). **B)** *If the* Dredger *is not in the name of bidder, then following documents shall be submitted* along with Technical / Pre-qualification Bid). i) To submit Legally binding / enforceable MoU with the owner of the dredger(s) on a Rs.100/- Non-judicial stamp paper for chartering/ hiring for deployment at Paradip Port against the referred above tender along with Technical Specifications of the dredger(s) being offered which shall be meeting to the Technical Specification similar to specification mentioned in the Scope of Work (Proof to be submitted as per format at **APPENDIX – V.** ii) To submit the Registration Certificate & other valid Certificates like Certificate of Class with annual endorsement, Records of Safety Equipment, Insurance certificate etc (Copy to be submitted) for the proposed dredger(s). **N.B.:(a)** The firm must have been registered in India under Company Act. (A copy of Registration Certificate as per Companies Act 1956 and as amended is to be submitted as proof.)	

	(b) The offered vessel must have been classed with any one of the IACS members (Copy of Classification Certificate to be submitted along with Technical / Pre-qualification Bid).	
7.	**<u>UNDERTAKING BY THE BIDDERS:</u>** The bidders shall give an undertaking as below: "We hereby undertake that - **a.**we have not made any payment or illegal gratification to any person / authority connected with the bid process so as to influence the bid process and have not committed any offence under the Prevention of Corruption Act (PC Act) in connection with the bid. **b.**Having understood all the terms and conditions of the tender document and having assessed the site conditions, we hereby confirm that the price offered by us is a firm price and includes all the taxes, duties, fees, Cess etc. and all incidental charges except GST. **c.** We undertake and declare that our firm is not having Debarment / blacklisting/ ban of business with any government organizations. **d.**We declare that we are not related to any officers of Paradip Port Authority or any officer of the rank of undersecretary or above in the Ministry of Ports, Shipping & Waterways(MoPS&W), Govt. of India." **<u>N.B.:</u>** If firm is having any relation with officer of Paradip Port Authority then they should give a declaration along with the tender about the name of the relative who are employed as non-gazette employee in Paradip Port Authority.	
8.	Scan Copy of Registration of the firm in India under Company Act 1956 or as amended.	
9.	Details of present technical staff and list showing qualifications and experience of the key personnel proposed for administration and execution of the contract both on & off site.	
10	Name of the partners /directors indicating their holding positions in the firm / company.	
11.	Copies of original document defining the constitution or legal status, place of registration and principal place of business of the company/ proprietorship firm, partnership firm or any other business structure.	
12.	Scanned copy of original TDS Traces Certificate must be furnished if the work completion Certificate has been obtained from any Private Organization is submitted.	

"COVER -3 (PRICE BID)"

Sl. No.	Description of Documents	Whether submitted by the Tenderer (Yes/No) & Ref. of page No.
1.	It shall contain the Price Bids for the work in the Bill of Quantity [BoQ] format. In the e-Procurement Portal, an intelligent Bill of Quantity in Microsoft Excel format shall be made available to the bidder. For item rate tenders, the bidder shall fill in rates in figures and should not leave any cell blank. The line item total in words and the total amount shall be calculated by the system and shall be visible to the bidder. He has to only write (type) the figures, the words will be self-generated (Enabling macros).	

Signature of Contractor with Seal

APPENDIX – V

TECHNICAL SPECIFICATION OF VESSEL OFFERED FOR DREDGING

1. Name of the Vessel/Call Sign :
2. Official No. :
3. Class :
4. Hopper Capacity :
5. Max. dredging depth :
6. Gross Tonnage :
7. Net Tonnage :
8. Light weight
9. Speed :
10. Year of Built :
11. L.O.A. :
12. Breadth (mld.) :
13. Depth (mld.) main hull :
14. Draft (max) :
15. Flag/Nationality :
16. Port of Registry :
17. Main Propulsion Engines :
    Make :
    BHP :
18. Propulsion and steering:
    Free sailing Propulsion Power (in KW):
19. Auxiliaries : Total no of DG sets on board:
    Rating of each DG set in KVA:
    Total shipload in KW:
20. Details of Dredge Pumps(Power of dredge pump during suction in KW) :
21. Details Jet Pumps (Power Jet Pumps on Draghead) :
22. Details of Bow-Thrusters :
23. Details of Suction Tubes(Nos. , Length & Dia.):
24. Details of Draghead(Dimensions, Model etc.):
25. Details of De-hoppering /Shore pumping /rain-bowing system:
26. Fuel (type /Capacity):
27. Avgerage fuel consumption per day (Dredging day) in MT:
28. Avergae Fuel Consumption per day (non-dredging day) in MT:
29. Capacity of oil reception tank:
30. Fresh Water capacity and Avg. Consumption per day:
31. Communication equipment (Specify each equipment) :
32. Navigation Equipment (Specify each equipment) :
33. Manning(Type) : (As per requirement of statutory authority)
34. Annual Crew Wages, Insurance & Overheads etc):
35. Details of Measuring equipment (DLM and others), other electronic equipment
    (Make, Calibration status& validity, sensors associated, dredging parameters etc):

36. Details of Dredging monitoring System:

Software & its scope :

Uploading survey soundings /matrix as per 1x1 grid in the dredging monitoring system:

Real time depth monitoring excluding tide /including tide):

Recording of Dredge Track :

Real time Depth update post dredging by the software itself:

Signature of the firm's owner or Representative

APPENDIX –VI

E-BANK GUARANTEE FORMAT FOR EMD

(To be used by Insurance Company / Scheduled Banks)

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually".**

Ref.: e-TCNNo.MD/SHS/TECH-16/2026/1225 Dt. 26/09/2026

WHEREAS _____(herein after called "the Bidder") has / have submitted his / their bid dated _____ for _____ (hereinafter called the "The Bid").

KNOWN ALL MEN by these presents that we _____ of _____ having our registered office at _____ (hereinafter called "The Bank") are bound onto Paradip Port Authority (hereinafter called Board) in the sum of Rs._____ (Rupees_____) only, for which payment will and truly to be made to the Board, the Bank bind itself, its successors and assigns, by these presents. Sealed with the common seal of the Bank this _____ day of _____ 20_____.

THE CONDITIONS under which the E-BG shall be invoked are as under:

1. In the event of the bidder withdrawing / modifying his tender before the expiry of tender validity of 90 days from the date of submission.
2. If the firm fails to submit the Performance Security Deposit within 30 days from the date of issue of LOA and fails to enter into an agreement with the Board upon award of contract within 07 days from the date of issuance of work order.

We undertake to pay to Paradip Port Authority the above amount, accordingly to and upon receipt of their first written demand, without Paradip Port Authority having to substantiate their demand, provided that in their demand Paradip Port Authority will note that the amount claimed by them is due to them owing to the occurrence of any one or all of the above-stated conditions, specifying the occurred condition or conditions.

This E-bank guarantee shall be payable on submission of a request letter for revocation at Paradip Branch with Code No. _____ at Paradip. (The detailed postal address of the branch of the bank where the E-BG can be en-cashed is to be mentioned).

The above reference (E-TCN No.) must be used for all correspondences on this E-bank guarantee.

"Notwithstanding anything to contrary contained in any law for the time being force or banking practice, this guarantee shall not be assigned or transferable by the beneficiary. Noticed or invocation by any person such as assignee, transferee or agent of beneficiary shall not be attained by the Bank. Any invocation of guarantee can be made only by the beneficiary directly."

Notwithstanding anything contained herein:

a. Our liability under this guarantee shall not exceed Rs. ---------- (Rupees----------) only.
b. This E-bank guarantee shall be valid up to----------; and
c. We are liable to pay the Guarantee amount or any part thereof under this E-bank guarantee only and only if you serve upon us a written claim or demand on or before……..(date of expiry of Guarantee)

(Name of the Bank)

Notes: The e-bank guarantee shall be encashable at Paradip Branch of issuing bank

BY_____
Title
Authorized Representative

(Signature of witness)
Name & Address of witness

BENEFICIARY DETAILS IN FAVOUR OF WHICH e-BG TO BE ISSUED

Sr. No.	Particulars	Beneficiary Details
1.	PAN	AAALP0055A
2.	Name	PARADIP PORT AUTHORITY
3.	Date of Incorporation / Birth	01/06/1965
4.	Email ID	facao@paradipport.gov.in
5.	Contact Number	9937979753
6.	Legal Constitution	Local Authority
7.	Registered Office Address	Paradip, Dist.- Jagatsinghpur, Odisha
8.	Registered Office Address Pin Code	754142
9.	Communication Address	Paradip, Dist.- Jagatsinghpur, Odisha
10.	Communication Address Pin Code	754142
11.	Business Unit Code	
12.	Contact Reference Number	
13.	Vendor Code	
14.	e-Portal ID (GeM ID)	

APPENDIX – VI(A)

FORMAT OF INSURANCE SURETY BOND/ FIXED DEPOSIT FOR EMD

(To be used by Insurance Company / Scheduled Banks)

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",**

Ref.: e-TCN No. MD/SHS/TECH-16/2026/1225 Dt.26/09/2026.

KNOW ALL BY THESE PRESENT THAT _____ (Name of the Bank), a Banking Corporation carrying on banking business including Guarantees at Paradip and other places and having its office at _____ (hereinafter called 'The Bank' which expression shall unless excluded by or repugnant to the context or meaning thereof be deemed to include its successors and assigns).

WHEREAS the Board of Paradip Port Authority constituted under the Major Port Trusts Act, 1963 / Major Port Authority Act' 2021 (hereinafter called 'The Board' which expression shall unless repugnant to the context or meaning thereof be deemed to include its successors and assigns) had invited tenders for _____ (hereinafter called Tender) as per Instructions to the Tenderers, General Conditions of the Contract, Scope of work, Specifications and Price schedule covered under 'Tender'.

AND WHEREAS M/s_____ (hereinafter called the 'Tenderer') has offered to carry out the work under the said Tender.

AND WHEREAS under the conditions of the tender, the Tenderer is required to give an Earnest Money Deposit in the form of Insurance Surety Bond / Fixed Deposit from the insurance company / scheduled Bank for the sum of Rs._____ (Rupees_____) and should be encashable at Paradip branch of issuing bank.

AND WHEREAS M/s. _____ have requested the Insurance Company / Scheduled Banks to furnish a Guarantee to the Board for the sum of Rs._____ (Rupees_____).

NOW THIS IDENTURE WITNESSETH that the said Bank do hereby stand surety for the said sum of Rs._____ (Rupees_____ _____) AND DO HEREBY GUARANTEE TO AND COVENANT WITH AND irrevocably agree to pay to the Board upon demand in writing without referring to M/s. _____ (Name of the Tenderer) and without questioning the right of the Board to make such demand or the propriety or legality of such demand, such sum or sums not exceeding in the whole a sum of Rs._____ (Rupees_____) as may be payable to the Board by the Tenderer by reason of withdrawing his tender before the expiry of validity period of the Tender or such time as may be extended by the Board to which M/s._____ have agreed in writing, or in the event of the tender being accepted by the Board and fails to enter into a Contract or to furnish performance Guarantee as per the terms of the contract, in respect of which the decision of the Board shall be final and legally binding and the said Bank do further covenant and declare that this security is irrevocable and shall remain in force up to and inclusive of the _____ (date):

AND Insurance Company / Scheduled Banks further declares that notwithstanding anything to the contrary contained hereinabove, the Insurance Company / Scheduled Banks liabilities under the Guarantee is restricted to Rs._____ (Rupees _____) and unless a demand in writing under the Guarantee is made with the Bank within the date _____, all the rights of Board under this Guarantee shall be forfeited and the Bank shall be relieved and discharged from all liability there under:

Notwithstanding anything to the contrary contained herein:
Our liability under this Bank Guarantee shall not exceed Rs._____(Rupees_____) only.
This bank Guarantee shall be valid upto _____ and
We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before _____.
IN WITNESS WHEREOF, the duly constituted attorney of the Bank has here upto set his/their hands and seals on the _____of _____20__.

SIGNED, SEALED & DELIVERED
By the within named_____
Through its duly _____
Constituted Attorney Mr._____

APPENDIX – VII

FORMAT OF E-BANK GUARANTEE FOR PERFORMANCE SECURITY DEPOSIT

(To be used by Insurance Company / Scheduled Banks)

Ref.: e-Tender Call Notice No.MD/SHS/TECH-16/2026/1225 dtd. 26/09/2026.

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",**

Letter of AcceptanceNo.: MD/SHS/TECH-16/2026/____ Date:_____

WHEREAS ----------(herein after called "the Bidder") has / have submitted his / their bid dated ----------for "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",** "(hereinafter called the "the Bid').

KNOWN ALL MEN by these presents that we---------- (Name of Bank) having our registered office at ----------(hereinafter called "the Bank") are bound onto Paradip Port Authority (hereinafter called Paradip Port Authority) in the sum of Rs.----------(Rupees----------) only, for which payment will and truly to be made to the said purchaser, the Bank bind itself, its successors and assigns, by these presents. Sealed with Common Seal of the Bank this ----------day of ----------20__.

The Conditions under which the E-BG shall be invoked are as under:

1. If the Bidder fails to comply with the terms & conditions of the tender as per the agreement.

We undertake to pay to Paradip Port Authority the above amount, according to and upon receipt of their first written demand, without Paradip Port Authority having to substantiate their demand, provided that in their demand Paradip Port Authority will note that the amount claimed by them is due to them owing to the occurrence of any one or all of the above stated conditions, specifying the occurred condition or conditions.

This E-bank guarantee shall be payable on submission of a request letter for revocation at _____ Branch with Code No._____ at Paradip in case there is a branch at Paradip and in case there is no branch at Paradip, then at a branch nearest to Paradip strictly following the guidelines issued

by RBI from time to time (The detailed postal address of the branch of the bank where the E-BG can be en-cashed is to be mentioned).

THIS GUARANTEE will remain in force up to and including dt.---------- and any demand in respect thereof should reach the Bank not later than such date.

The above reference (Agreement No.) must be used for all correspondences on this E-bank guarantee.

(Name of the Bank)

Notes: The e-bank guarantee shall be en-cashable at Paradip Branch of issuing bank.

By_____

Title

(Signature of witness) Authorized Representative

Name & address of witness:

BENEFICIARY DETAILS IN FAVOUR OF WHICH e-BG TO BE ISSUED

Sr. No.	Particulars	Beneficiary Details
1.	PAN	AAALP0055A
2.	Name	PARADIP PORT AUTHORITY
3.	Date of Incorporation / Birth	01/06/1965
4.	Email ID	facao@paradipport.gov.in
5.	Contact Number	9937979753
6.	Legal Constitution	Local Authority
7.	Registered Office Address	Paradip, Dist.- Jagatsinghpur, Odisha
8.	Registered Office Address Pin Code	754142
9.	Communication Address	Paradip, Dist.- Jagatsinghpur, Odisha
10.	Communication Address Pin Code	754142
11.	Business Unit Code	
12.	Contact Reference Number	
13.	Vendor Code	
14.	e-Portal ID (GeM ID)	

APPENDIX – VII(A)

FORMAT OF INSURANCE SURETY BOND / FIXED DEPOSIT
FOR PERFORMANCE SECURITY DEPOSIT

(To be used by Insurance Company / Scheduled Banks)

Ref.: e-Tender Call Notice No.MD/SHS/TECH-16/2026/1225 dtd. 26/09/2026.

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",**

Letter of AcceptanceNo.MD/SHS/TECH-16/2026/____ Date:_____

In consideration of the Board of Authorities of Paradip Port Authority (hereinafter called 'the Board') having agreed to exempt _____ - _____(hereinafter called the 'the said contractor/s') from the demand under the terms and conditions of an agreement to be entered between _____ _____ and the Board of Authorities of Paradip Port Authority for "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",** (hereinafter called 'the said agreement') of Performance Security Deposit / Performance Guarantee for the due fulfilment by the said contractor/s of the terms and conditions contained in the said agreement, on production of an **INSURANCE SURETY BOND / FIXED DEPOSIT** for Rs._____ (Rupees_____)only, we _____ Insurance Company / Scheduled Banks (hereinafter referred to as 'Insurance Company / Scheduled Banks') do hereby undertake to pay to the Board an amount not exceeding Rs. _____ against any loss or damage caused to or suffered by or would be caused to or suffered by the Board by reason of any breach by the said contractor(s) of any of the terms and conditions contained in the said Agreement.

1) We, _____ Insurance Company / Scheduled Banks, do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Board stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by or would be suffered by the Board by reason of any breach by the said contractor(s) of any of the term or condition contained in the said agreement or by reason of the contractor's failure to perform the said agreement. Any such demand made on the Insurance Company / Scheduled Banks shall be conclusive as regards the amount due and payable by the Insurance Company / Scheduled Banks under this agreement. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. _____.

2) We, _____ Insurance Company / Scheduled Banks, further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the dues of the Board under or by virtue of the said agreement have been fully paid and its claim satisfied or discharged or till the Board certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said contractor(s) and accordingly discharges the guarantee. Unless a demand or claim under this guarantee is made on us in writing within two months from the expiry date i.e. from _____ we shall be discharged from all liabilities under this guarantee thereafter.

3) We, _____ Bank, further agree with the Board that the Board shall have the fullest liberty without our consent and without affecting in any manner our obligation hereunder to vary any of the terms and conditions of the said agreement or to extend time of performance by the said contractor(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the Board against the said contractor(s) and to forbear or endorse any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation or extension being granted to the said contractor(s) or for any forbearance act or omission, on the part of the Board or any indulgence by the Board to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving us.

4) Notwithstanding anything stated above, our liability under the guarantee is restricted to Rs._____ (Rupees _____ _____ only). The guarantee shall remain in force until _____. Unless a suit or action to enforce claim under the guarantee is filed against us within three months from that date, all rights under the guarantee shall be forfeited and we shall be relieved and discharged from all liabilities thereunder.

5) We, _____ Insurance Company / Scheduled Banks, lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Board in writing.

Dated _____ day of _____

FOR _____ BANK

APPENDIX – VIII

FORMAT OF e-BG FOR E.A.S.D

(To be used by Nationalized / scheduled Banks)

Ref.: e-Tender Call Notice No.MD/SHS/TECH-16/2026/1225 dtd. 26/09/2026

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",**

In consideration of the Board of Authorities of Paradip Port Authority (hereinafter called 'the Board') having agreed to exempt _____ - _____(hereinafter called the 'the said contractor/s') from the demand under the terms and conditions of an agreement to be entered between _____ _____ and the Board of Authorities of Paradip Port Authority for "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",**

1) (hereinafter called 'the said agreement') of E.A.S.D for the due fulfilment by the said contractor/s of the terms and conditions contained in the said agreement, on production of a Bank Guarantee for Rs._____ (Rupees _____ only), we _____ Bank (hereinafter referred to as 'the Bank') do hereby undertake to pay to the Board an amount not exceeding Rs. _____ against any loss or damage caused to or suffered by or would be caused to or suffered by the Board by reason of any breach by the said contractor(s) of any of the terms and conditions contained in the said Agreement.

2) We, _____ Bank, do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Board stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by or would be suffered by the Board by reason of any breach by the said contractor(s) of any of the term or condition contained in the said agreement or by reason of the contractor's failure to perform the said agreement. Any such demand made on the Bank shall be conclusive as regards the amount due and payable by the Bank under this agreement. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. _____.

3) We, _____ Bank, further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the dues of the Board under or by virtue of the said agreement have been fully paid and its claim satisfied or discharged or till the Board certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said contractor(s) and accordingly discharges the guarantee. Unless a demand or claim under this guarantee is made on us in writing within two months from the expiry date i.e. from _____ we shall be discharged from all liabilities under this guarantee thereafter.

4) We, _____ Bank, further agree with the Board that the Board shall have the fullest liberty without our consent and without affecting in any manner our obligation

hereunder to vary any of the terms and conditions of the said agreement or to extend time of performance by the said contractor(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the Board against the said contractor(s) and to forbear or endorse any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation or extension being granted to the said contractor(s) or for any forbearance act or omission, on the part of the Board or any indulgence by the Board to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving us.

5) Notwithstanding anything stated above, our liability under the guarantee is restricted to Rs._____ (Rupees _____ _____ only). The guarantee shall remain in force until _____. Unless a suit or action to enforce claim under the guarantee is filed against us within three months from that date, all rights under the guarantee shall be forfeited and we shall be relieved and discharged from all liabilities thereunder.

6) The Board is authorized to enforce claim against the guarantee at the local branch of the issuing Bank in Paradip in case such an eventuality arises (*).

7) We, _____ Bank, lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Board in writing.

Dated _____ day of _____

FOR _____ BANK

BENEFICIARY DETAILS IN FAVOUR OF WHICH e-BG TO BE ISSUED

Sr. No.	Particulars	Beneficiary Details
1.	PAN	AAALP0055A
2.	Name	PARADIP PORT AUTHORITY
3.	Date of Incorporation / Birth	01/06/1965
4.	Email ID	facao@paradipport.gov.in
5.	Contact Number	9937979753
6.	Legal Constitution	Local Authority
7.	Registered Office Address	Paradip, Dist.- Jagatsinghpur, Odisha
8.	Registered Office Address Pin Code	754142
9.	Communication Address	Paradip, Dist.- Jagatsinghpur, Odisha
10.	Communication Address Pin Code	754142
11.	Business Unit Code	
12.	Contact Reference Number	
13.	Vendor Code	
14.	e-Portal ID (GeM ID)	

APPENDIX – VIII(A)

FORMAT OF INSURANCE SURETY BOND / FIXED DEPOSIT FOR E.A.S.D

(To be used by Insurance Company / Scheduled Banks)

Ref.: e-Tender Call Notice No.MD/SHS/TECH-16/2026/1225 dtd. 26/09/2026.

Name of the work: "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M³ annually",**

In consideration of the Board of Authorities of Paradip Port Authority (hereinafter called 'the Board') having agreed to exempt _____ - _____(hereinafter called the 'the said contractor/s') from the demand under the terms and conditions of an agreement to be entered between _____ _____ and the Board of Authorities of Paradip Port Authority for "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M³ annually",**

1) (hereinafter called 'the said agreement') of E.A.S.D for the due fulfilment by the said contractor/s of the terms and conditions contained in the said agreement, on production of an **INSURANCE SURETY BOND / FIXED DEPOSIT** for Rs._____ (Rupees_____)only, we _____ Insurance Company / Scheduled Banks (hereinafter referred to as 'Insurance Company / Scheduled Banks') do hereby undertake to pay to the Board an amount not exceeding Rs._____ against any loss or damage caused to or suffered by or would be caused to or suffered by the Board by reason of any breach by the said contractor(s) of any of the terms and conditions contained in the said Agreement.

2) We, _____ Insurance Company / Scheduled Banks, do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Board stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by or would be suffered by the Board by reason of any breach by the said contractor(s) of any of the term or condition contained in the said agreement or by reason of the contractor's failure to perform the said agreement. Any such demand made on the Insurance Company / Scheduled Banks shall be conclusive as regards the amount due and payable by the Insurance Company / Scheduled Banks under this agreement. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. _____.

3) We, _____ Insurance Company / Scheduled Banks, further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said agreement and that it shall continue to be enforceable till all the dues of the Board under or by virtue of the said agreement have been fully paid and its claim satisfied or discharged or till the Board certifies that the terms and conditions of the said agreement have been fully and properly carried out by the said contractor(s) and accordingly discharges the guarantee. Unless a demand or claim under this guarantee is made on us in writing within two months from the expiry date i.e. from _____ we shall be discharged from all liabilities under this guarantee thereafter.

4) We, _____ Bank, further agree with the Board that the Board shall have the fullest liberty without our consent and without affecting in any manner our obligation hereunder to vary any of the terms and conditions of the said agreement or to extend time of

performance by the said contractor(s) from time to time or to postpone for any time or from time to time any of the powers exercisable by the Board against the said contractor(s) and to forbear or endorse any of the terms and conditions relating to the said agreement and we shall not be relieved from our liability by reason of any such variation or extension being granted to the said contractor(s) or for any forbearance act or omission, on the part of the Board or any indulgence by the Board to the said contractor(s) or by any such matter or thing whatsoever which under the law relating to sureties would but for this provision have effect of so relieving us.

5) Notwithstanding anything stated above, our liability under the guarantee is restricted to Rs._____ (Rupees _____ _____ only). The guarantee shall remain in force until _____. Unless a suit or action to enforce claim under the guarantee is filed against us within three months from that date, all rights under the guarantee shall be forfeited and we shall be relieved and discharged from all liabilities thereunder.

6) We, _____ Insurance Company / Scheduled Banks, lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Board in writing.

Dated _____ day of _____

FOR _____ BANK

APPENDIX – IX

FORMAT FOR REFUND OF EMD

(To be submitted in Official Letter Head duly signed & stamped)

To

The Deputy Conservator,
Marine Department,
Paradip Port Authority.

Sub.: Request for Refund of Earnest Money Deposited by us for the tender "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually".**

Ref.: e-Tender Call Notice No. MD/SHS/TECH-16/2026/1225 dtd. 26/09/2026.

Dear Sir,

With reference to the above tender, it is requested that the Earnest Money of **Rs. 10,27,57,035/-** deposited by us through RTGS / NEFT / E-bank guarantee/ Fixed deposit/ Insurance Surety Bond bearing No._____ dtd._____ may please be refunded to us as remitted.

The bank details of the receiver are as follows:

1. Name of the Firm (beneficiary) :
2. Amount to be Paid / Refunded :
3. Name of the Bank with Address :
4. Bank Account Number :
5. Account type :
6. IFSC Code No. of the Bank :

Thanking you,

Yours faithfully,

Signature of the firm with official seal

APPENDIX – X

STANDARD FORMAT FOR JOINT VENTURE / CONSORTIUM AGREEMENT

(TO BE EXECUTED ON Rs.100/- NON-JUDICIAL STAMP PAPER)

This Joint Venture / Consortium Agreement (herein after called the "Agreement") made and entered into on this ……day in the month of ……..20…… by and among:

Name and address of the leading member herein after called …….., which expression shall include its successor, legal representatives and permitted assignees, for the purpose of this agreement shall hereinafter be called "leading member".

And Name and address of the other member herein after called ……., which expression shall include its successor, legal representatives and permitted assignees, for the purpose of this agreement shall hereinafter be called "Principal member".

Whereas Paradip Port Authority (herein after referred to as "Employer" invites sealed offers for the work "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",** (hereinafter called the "the Bid')AND WHEREAS the members, in consideration of their complementary technical and commercial resources and capabilities, intend to co-operate and join efforts to prepare and submit a bid for the project.

In consideration of the aforesaid, the members wish to establish and record the preliminary principles of their co-operation in this Agreement.

M/s ……would be the leader of the Joint Venture/Consortium and M/s ……would be a member of the Consortium.

Now therefore, the members hereto in consideration of their mutual covenants hereinafter set forth and intending to be legally bound hereby, agree as follows:-

1. DEFINITION:

1.1 "Contract" shall mean the contract signed between the Employer and the Joint Venture / Consortium for the execution of the project.

1.2 "Bid" shall mean the bid to be submitted by the Lead Member on behalf of the Joint Venture/Consortium to the Employer in accordance with this agreement.

2. CO-OPERATION:

2.1 Subject to the terms and conditions of this Joint Venture/Consortium agreement, the members agree to co-operate with each other on an exclusive basis in the preparation and submission of bid for the project, and if the contract is awarded, for satisfactory implementation of the project. The mode of co-operation shall be in accordance with clauses laid herein.

2.2 The members agree to co-operate fully with each other to ensure a smooth and timely progress towards satisfactory completion of bid submission, to do all the things necessary to assist each other and to provide mutual disclosure of relevant knowledge so as to procure the award of the contract from the Employer.

3. SCOPE OF WORK AND PREPARATION OF BID:

3.1 The general and tentative Scope of Work of the members is outlined as under:-

Scope of Work of the project to be performed by the members.

Sl. No.	Item of works	To be executed by the Lead Member M/s……..	To be executed by the Member M/s……..	To be executed by the Member M/s……..

3.2 The Members acknowledge that competitive pricing is a critical element in achieving a successful outcome of this co-operation and shall use their best efforts to ensure that the prices submitted will be competitive.

4. MODE OF CO-OPERATION:

4.1 M/s …… shall be the Leader of the Consortium and shall submit the bid to the Employer. The bid document shall be binding on all the members of Joint Venture/Consortium. Based on the requirement of the enquiry issued by the Employer, the other members shall submit its price and technical and commercial documents to the Leader for its part of Scope of Work before submission of final price bid. However, the Leader shall be entitled to modify the scope and / or price after consulting with the other members. The other members shall revise their prices and technical and commercial documents accordingly, if necessary. The revised price submitted by the other members shall be subject to the Leader's final confirmation, which shall constitute the final price for performance of its scope of work.

4.2 Once the Employer decides to enter into a contract with the Joint Venture/Consortium, prior to signing the contract, a detailed internal agreement, in line with the principle of this agreement, shall be signed which shall include without limitation, the scope and price, the obligation, responsibilities and liabilities of each member.

4.3 The Scope of Work for the Project will be divided between the members as per Clause 3.1. The Members shall be responsible for the performance of their respective parts of the Scope of work in accordance with the internal agreement. However, all the Members shall be jointly and severally liable to the Employer for successful completion of the Scope of Work as per terms and conditions under the Contract.

4.4 After award of the Contract, the Leader shall appoint a representative as Project Manager. Other members (……..) shall submit a general authorisation document, giving the Project Manager all authority necessary to act on the Consortium's behalf under the Contract. The Project Manager shall consult with the Members for those parts under Scope of Work of the Members. The lead partner shall be solely responsible for project management of work.

4.5 The Members shall be individually responsible for the guarantee and performance of their respective parts of the Scope of Work. When required, performance guarantee and other guarantees shall be supplied by each Member in proportion to their actual contract amount under the Contract.

4.6 The Agreement shall not be assignable to 3rd party without the prior permission of Paradip Port Authority.

4.7 After award of the Contract, the Members shall perform their respective parts of the Scope of work in accordance with the internal agreement and the Contract. Neither member shall withdraw from the Consortium without the prior approval of the other Members of the Joint Venture/Consortium agreement in writing. In the event of default by any member, the defaulting member shall be responsible to compensate the other members of the Joint Venture/Consortium agreement for any loss incurred thereof.

4.8 The agreement shall not, in any way, constitute an association of partnership agreement and the association of persons.

4.9 The Members shall abide by the requirements and stipulations of the Bidding document and the Contract

5. COST:

Each Member shall bear its own expenses incurred in connection with the performance of its obligations under this agreement including submission of the bid.

6. DISPUTE RESOLUTION:

The Members shall endeavour to resolve any dispute arising out of or in connection with this agreement among themselves through amicable negotiations. Any such dispute including any question regarding the existence, validity or termination of the agreement which the Members are unable to resolve between themselves, shall be referred to and finally be settled by arbitration in accordance with the Indian Arbitration and Conciliation Act, 1996 with an arbitral tribunal comprising of three members and proceeding thereof shall be in English Language. Award of arbitrators shall be final and binding to all the Members and shall not be further challenged in the Court of law. The venue of arbitration shall be Cuttack / Bhubaneswar, Odisha.

7. TERMINATION:

This agreement shall come into force on the date of signing of the same and valid till Time of Completion of the Project period. This agreement shall expire upon the date of occurrence of any one of the following events, which ever shall occur first:

a) Project is officially called off by the Employer;
b) The Employer has awarded the Contract for the Project to any other Bidder;
c) The completion of the Scope of Work and its obligations and liabilities of the members under this agreement and the Contract;
d) Become insolvent or bankrupt, or enter into a temporary receivership with any creditors or enter into compulsory or voluntary liquidation (except for purposes of recovery).

8. CONFIDENTIALITY:

The Members hereto agree and undertake that all information and details, whether written or oral, including but not limited to drawings, designs, information and data, in connection with the Project shall not be disclosed to any other third party without prior written consent of the other members of the agreement except for this agreement.

9. HEADINGS:

The heading of this agreement is solely for reference and has no legal effect whatsoever and shall not in any way affect the interpretation or constitution of this agreement.

10. FORCE MAJEURE:

No Party shall be liable for any failure to perform its obligations under this agreement if the failure results from events under Force Majeure. For the purpose of this agreement, such events shall include, without limitation, strikes, lockouts, riots, civil disturbances, action or inaction of governmental authorities, epidemics, wars, embargoes, acts of God or other catastrophes.

11. MISCELLANEOUS:

This agreement will conform to all relevant Indian laws and regulations. Any difference that may exist will be negotiated in good faith and will not impact the effectiveness of the other clauses.

IN WITNESS WHEREOF, the Members hereto have caused their respective duly authorized representatives to execute this agreement the day and year first above written

SIGNED BY

For and On Behalf of	**For and On Behalf of**
M/s. ……	**M/s ……**
(Authorised Signatory)	**(Authorised Signatory)**
Name:	Name:
Common Seal of the Company	Common Seal of the Company

APPENDIX – XI

FORMAT OF TDS DETAILS FOR THE SIMILAR WORKS
TO WHOMSOEVER IT MAY CONCERN

We have verified the TDS Certificate (26 AS) during the FY(s) ……., work allotment letter and other related documents issued by **(Name of the Firm)** having its registered office at _____ and certified **that TDS deducted during FY(s) in respect of the work as detailed below:**

Sl. No.	Name of the Similar Work executed	Financial Years	Executed value excluding GST	TDS Amount (in Rs.)
1.				
2.				
3.				
4.				
5.				
6.				
7.				

Chartered Accountant

Sign. and Seal with UDIN No.

APPENDIX – XII

FORMAT FOR AGREEMENT

This Agreement made this _____Day of _____ 20__ between the Board of Paradip Port Authority, Board means the Board members of Paradip Port Authority (PPA), a body corporate under the Major Port Authority Act' 2021 as amended from time to time or any other Officer duly authorized by them to execute the contract (herein after called the Board which expression shall unless excluded by or repugnant to the context be deemed to include their successors in office) of the one part and M/s._____(hereinafter called the contractor) which expression shall unless excluded by or repugnant to the context be deemed to include his surviving or other partners and the persons entitled to share including his heirs, executors, administrators, representatives and assignees of successors in the other part.

WHEREAS the Board is desirous of executing the work "**Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the years 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M^3 annually",** (hereinafter called the "the Bid') at Paradip and WHEREAS the contractor_____ has offered to execute, complete and maintain such work in perfect condition till handing over to Board and whereas the Board has accepted tender of the contractor for an amount of Rs._____(Rupees _____) only for execution/supply/maintenance and WHEREAS the Contractor has agreed to take up the above work in accordance with the conditions of contract and to the entire satisfaction of the Board of Paradip Port Authority.

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this agreement, words and expressions shall have the same meaning as are respectively assigned to them in all the conditions of the contract herein after referred to.
2. The following documents consisting of _____pages shall be deemed to form and be read and considered as part of the agreement.
   i) The tender call notice.
   ii) The original Tender Document of firm (with required enclosures only).
   iii) Letter of acceptance (LOA).
   iv) Work Order No.
   v) Any other letter(s) exchanged between Contractor & Paradip Port Authority in connection with the relevant tender.
3. The contractor hereby covenant with Board to execute, complete and maintain the work till handing over to the Board in all respects.
4. The parties may refer their present or future dispute relating to the contract itself or arising out of or concerning or in connection with or in consequence of the contract to the Chairman, PPA and the decision of the Chairman, PPA will be final and binding on both the parties. The contract shall be governed by the Indian Contract Act, 1872.
5. It is agreed that neither of the parties to the agreement shall be competent to resort to Arbitration under the Arbitration and Conciliation Act, 1996 for adjudication of claim.
6. All such disputes, present or future between the parties relating to the Contract, which could not be settled at the intervention of Chairman, PPA can only be raised and adjudicated by the courts situated within the jurisdiction of Kujang.
7. It is agreed by the contractor that the Board shall recover the ground rent towards construction of site office / camp etc. as will be determined by the Sr. Asst. Estate Manager, PPA from time to time from his dues recoverable under the agreement.
8. The structure of the site office / camp shall be temporary in nature and the final dues of the contractor shall be settled only after handing over vacant possession of the work site to the Board after demolition of the site office / camp by the contractor at his own cost.

9. The Board hereby covenant to pay the contractor in consideration of such execution, completion and maintenance of the work "The Contract Price" at the time and manners prescribed by the Contract.

In witness where of the parties here unto have set their hands and seals the day and year first above written.

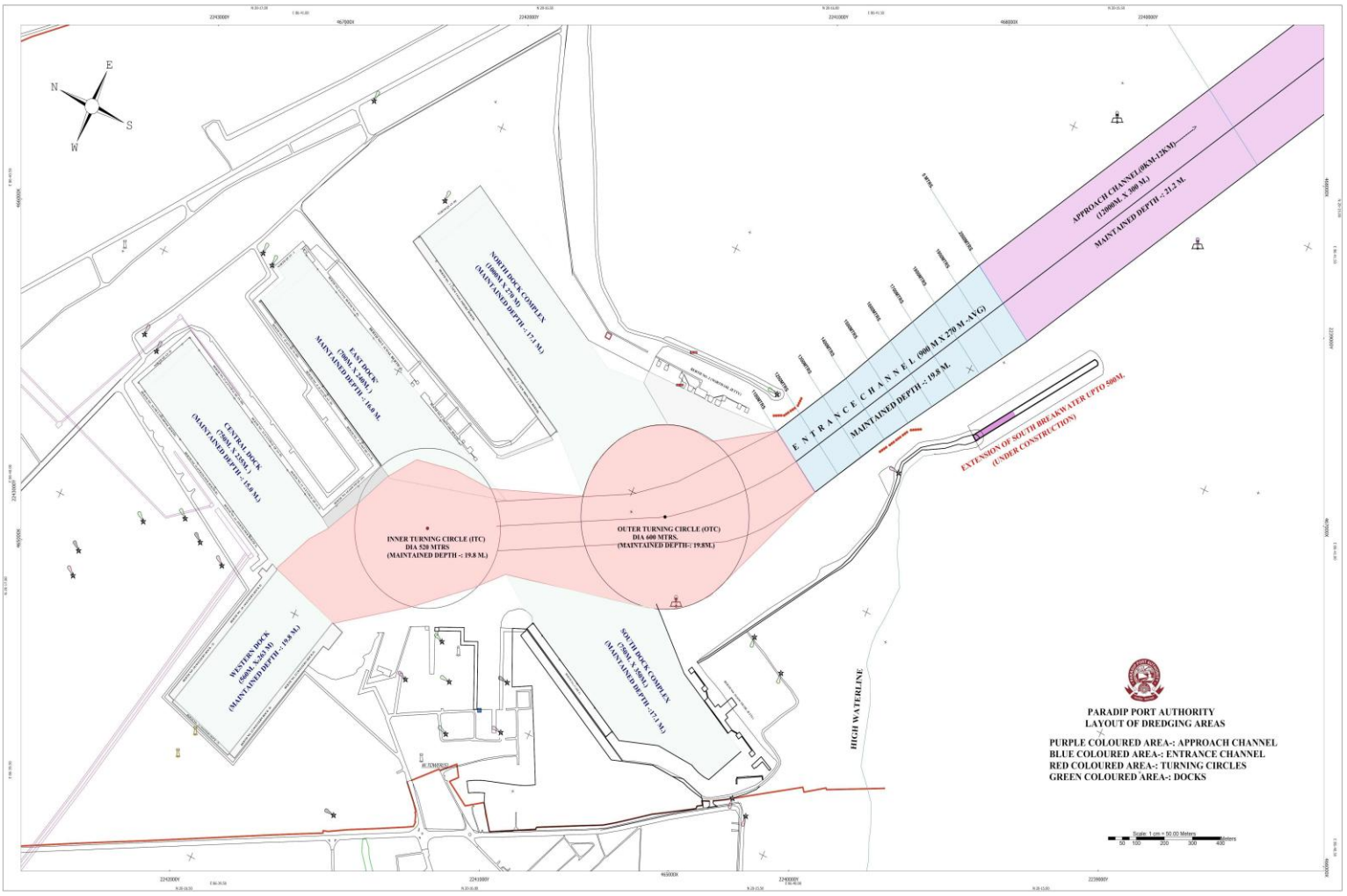
Signature of the Contractor

Deputy Conservator,
Paradip Port Authority
For & on behalf of the Board of PPA.

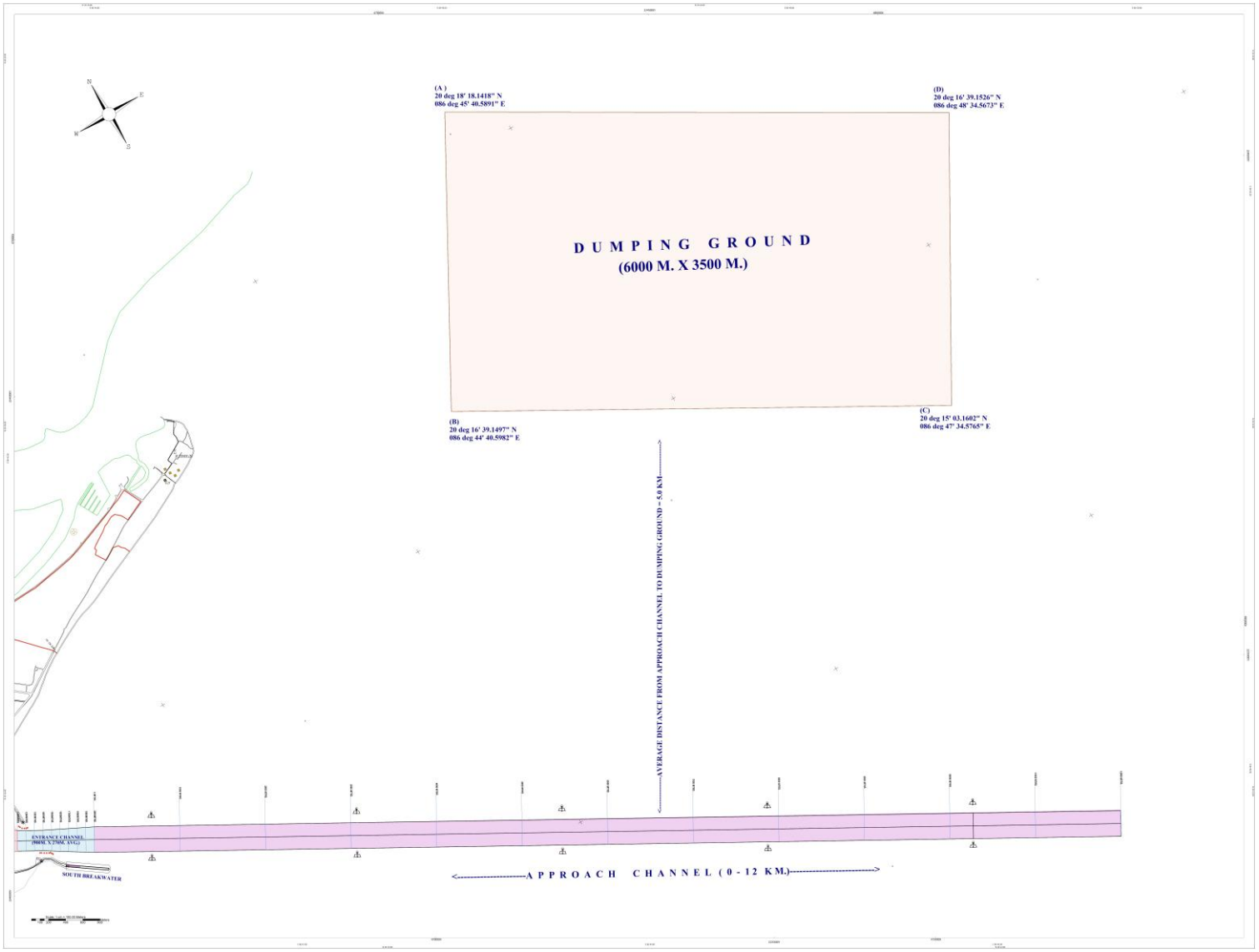
Witnesses: 1)
2)

APPENDIX-XIII

(1) Layout Of Dredging areas for Maintenance Dredging of Paradip Port.



(2) Layout Of Dumping Ground and its distance from the Channel.



APPENDIX – XIV

INTEGRITY PACT

This work will be included in the integrity pact & accordingly will be entrusted to the Independent External Monitor (IEM) for effecting transparency & maintaining quality. **(1) Shri Ramesh Narain Misra, Ex-CMD, SJVN & (2) Shri Pramod Shripad Phalnikar, IPS (Retd.)** have been appointed as IEMs for Paradip Port Authority by CVC. All necessary coordination to be provided to them as & when required.

The Integrity Pact will be as under.

Paradip Port Authority (PPA) hereinafter referred to as "The Principal" which includes Purchaser/ Employer.

And

..... hereinafter referred to as "The Bidder/ Contractor"

Preamble

The Principal intends to award, under laid down organizational procedures, a contract for "Maintenance Dredging of Approach Channel, Entrance Channel, Turning Circles &Docks of Paradip Port Authority for the period of 03(three) years i.e for the year 2027-28 to 2029-30 to dredge a quantity of around 4.14 Million M3 annually". The Principal values full compliance with all relevant laws of the land, rules, regulations, economic use of resources, and of fairness/ transparency in its relations with its Bidder(s) and / or contractor(s).

The Principal will nominate an Independent External Monitor (IEM) by name at the tender stage/ will appoint in case of receipt of any reference, from the panel of IEMs, for monitoring the tender process and the execution of the contract in order to ensure compliance with the Integrity Pact by all the parties concerned.

Section – 1 Commitments of the Principal / Purchaser / Employer:

(1) The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles: -

(a) No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand, take a promise for or accept, for self or for third person, any material or non-material benefit with the person is not legally entitled to.

(b) The Principal will, during the tender process treat all bidders with equity and reason. The Principal will in particular, before and during the tender process, provide to all Bidders the same information and will not provide to any Bidder confidential/ additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.

(c) The Principal will exclude from the process all known prejudiced persons.

(2) If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the IPC/ PC Act, or if there be a substantive suspicion in this regard, the Principal will inform Chief Vigilance Officer of PPA and in addition can initiate disciplinary action.

Section 2 – Commitments of the Bidder(s) / Contractor(s):

(1) The Bidder(s) Contractor(s) commits to take all measure necessary to prevent corruption. He commits to observe the following principles during his participation in the tender process and during the contract execution.

(a) The Bidder(s) / Contractor(s) will not, directly or through any other person or firms offer, promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit with he/ she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract or to vitiate the Principal's tender process of contract execution.

(b) The Bidder(s) / Contract(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process or to vitiate the Principal's tender process or execution of the contract.

(c) The Bidder(s) / Contractor(s) will not commit any offence under the IPC/ PC Act; further the Bidder(s) / Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the Principal as part of the business relationship regarding plans, technical proposal and business details including information contained or transmitted electronically.

(d) The Bidder(s) / Contractor(s) of foreign origin shall disclose the name and address of the Agent(s) / Contractor(s) of Indian nationality shall furnish the name and addresses of foreign supplier / contract Agency, if any. Further details, as mentioned *in the Guidelines on Indian Agents of Foreign "Suppliers/ Contract agencies"*, shall be disclosed by the Bidder(s) / Contractor(s) wherever applicable. Further, as mentioned in the guidelines, all the payments made to the Indian agent(s) / representative(s) have to be in Indian Rupees only.

(e) ***Copy of the guidelines on Indian Agents of Foreign "Suppliers/Contract agencies" is enclosed.***

(f) The Bidder(s) / Contractor(s) will, when presenting his bid, disclose any and all payments he has made or committed to or intends to make to the agents, brokers or any other intermediaries in connection with the award of the contract.

(g) In case of a joint venture, all the partners of the joint venture should sign the Integrity Pact. In case of sub-contracting, the Principal Contractor shall be solely responsible for the adherence to the provisions of IP by the sub-contractor(s).

(2) The Bidder(s) / Contractor(s) will not instigate third person to commit offences outlined above or be an accessory to such offences.

Section 3 – Disqualification from tender process and exclusion from future contracts:

(1) A transgression is considered to have occurred, if the principal after due consideration of the available evidence, concludes that reasonable doubt is possible.

(2) If the Bidder(s) / Contractor(s), before award of contract or after award of contract has committed a transgression through a violation of Section-2 above or in any other form such as to put his reliability or credibility in question, the Principal is entitled to disqualify the Bidder(s) from the tender process or to terminate the contract, if already awarded, for that reason, without prejudice to other remedies available to the principal under the relevant GCC of the tender/ Contract.

(3) If the Bidder(s) / Contractor(s) has committed transgression through a violation of any of the terms under Section 2 above or in any other form such as to put his reliability or credibility into question, the Principal is entitled also to exclude the bidder/ contractor from future tenders/ contract award processes. The imposition and duration of the exclusion will be determined by the circumstances of the case, in particular the number of transgression, the position of the transgressors within the company hierarchy of the bidder/ contractor and the amount of the damage.

(4) If it is observed after payment of final bill but before the expiry of validity of Integrity Pact that the contractor has committed a transgression through a violation of any of the terms under Section-2 above during the execution of contract, the Principal is entitled to exclude the contractor from future tenders/ contract award processes.

(5) The exclusion will be imposed for a minimum period of six (06) months and a maximum period of three (03) years.

(6) If the Bidder/ Contractor can prove that he has restored/ recouped the damage to the Principal caused by him and has installed a suitable corruption prevention system, the Principal may revoke the exclusion before the expiry of the period of such exclusion.

Section 4 – Compensation for Damages:

(1) If the Principal has disqualified the bidder from the tender process prior to the award in accordance with Section-3 above, the Earnest Money Deposit (EMD)/ Bid Security furnished, if any along with the offer as per the terms of the Invitation to Tender (ITT) shall be forfeited. This is apart from the disqualification of the Bidder as may be imposed by the Principal as brought out at Section-3 above.

(2) If the Principal has terminated the contract in accordance with Section-3 above, or if the Principal is entitled to terminate the contract in accordance with Section-3 above, the security Deposit/ performance bank guarantee furnished by the contractor, if any, as per the

terms of the ITT/ Contract shall be forfeited without prejudicing the rights and remedies available to the principal under the relevant General conditions of contract.

This is apart from the disqualification of the Bidder, as may be imposed by the Principal, as brought out at Section-3 above.

Section 5 – Previous transgressions:

(1) The Bidder declares that, to the best of his knowledge, no previous transgression occurred in the last three (03) years with any other company in any country conforming to the anti-corruption approach or with Government/ any other public sector enterprise in India that could justify his exclusion from the tender process.

(2) If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process. The contract, if already awarded, can be terminated for such reason.

Section 6 – Equal treatment of all Bidders / Contractors / Subcontractors:

(1) The Bidder(s) / Contractor(s) undertake to demand from all his subcontractors a commitment in conformity with this Integrity pact, and to submit it to the Principal before seeking permission for such subcontracting.

(2) The Principal will enter into agreements with identical conditions as this one with all Bidders and Contractors.

(3) The Principal will disqualify from the tender process all bidders who do not sign this pact or violate it provisions.

Section 7 – Criminal charges against violating Bidder(s) / Contractor(s) / Subcontractor(s).

If the Principal obtains knowledge of conduct of a Bidder, Contractor and Sub-contractor or of any employee or a representative or an associate of a Bidder/ Contractor/ subcontractor which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal will inform the same to CVO of Paradip Port Authority (PPA).

Section 8 – Independent External Monitor(s)(IEMs)

(1) The Principal appoints competent and credible Independent External Monitor(s) (IEMs) with clearance from Central Vigilance Commission and Transparency International (India). IEMs reviews independently, the cases referred to him/ them to assess whether and to what extend the parties concerned comply with the obligations under this Integrity Pact.

(2) In case of non -compliance of the provisions of the Integrity pact, the complaint/ non-compliance is to be lodged by the aggrieved party with the Nodal Officer only appointed by Chairman, PPA. The Nodal Officer shall refer the complaint/ non-compliance so received by him to the IEM, already appointed or to be appointed for that case.

(3) The IEM is not subject to instructions by both the parties and performs his functions neutrally and independently. The IEM(s) will submit report to the Chairman, PPA.

(4) The Bidder(s) / Contractor(s) accepts that the IEM has the right to access without restriction, to all tender/ contract documentation of the Principal including that provided by the Bidder/

Contractor. The Bidder/ Contractor will also grant the IEM upon his request and demonstration of a valid interest, unrestricted and unconditional access to his tender/ contract documentation. The same is applicable to subcontractor also. The IEM is under contractual obligation to treat the information and documents of the Bidder(s)/ Contractor(s)/ subcontractor(s) with confidentiality.

(5) The Principal will provide to the IEM sufficient information about all meetings among the parties related to the tender/ contract for the cases referred to IEM, provided such meetings could have an impact on the contractual relations between the Principal and the contractor. The parties offer to the IEM the option to participate in such meetings.

(6) As soon as the IEM notices, or believes to notice, a violation of this pact, he will so inform the Principal and request the principal to discontinue or take corrective action or to take other relevant action. The IEM can in this regard submit non-binding recommendations. Beyond this, the IEM has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.

(7) The IEM will submit a written report to the Chairman, PPA within four (04) to six (06) weeks from the date of reference or intimation to him by the Principal and, should the occasion arise, submit proposals for corrective actions for the violations or the breaches of the provisions of the agreement noticed by the IEM.

(8) IEM may also submit a report directly to the CVO of PPA and the Central Vigilance Commission, in case of suspicion of serious irregularities attracting provisions of the IPC/PC Act.

(9) Expenses of IEM shall be borne by PPA as per terms of appointment of IEMs.

(10) The word "Monitor" means independent External Monitor and would include both singular and plural.

Section 9 – Duration of the Integrity Pact:

(1) This Pact comes into force upon signing by the Principal and the Bidder/ Contractor. It expires for the contractor twelve (12) months after the payment under the contract, and for all unsuccessful Bidders, six (06) months after the contract has been awarded and accordingly for the Principal after the expiry of respective periods stated above.

(2) If any claim is made/ lodged during the valid period of the IP, the same shall be binding and continue to be valid even after the lapse of this pact as specified above, unless it is discharged/ determined by the Chairman, PPA.

Section 10 – Other provisions: -

(1) This agreement is subject to India Law. Place of performance and jurisdiction is the Registered Office of the Principal, i.e. Chairman, Paradip Port Authority, State of Orissa, India.

(2) Changes and supplements as well as termination notices to be made in writing. Side agreements to this pact have not been made.

(3) If the contractor is a partnership firm/ consortium, this agreement must be signed by all partners/ consortium members of their Authorized Representative(s) by duly furnishing Authorization to sign Integrity Pact.

(4) Should one or several provisions of this agreement turnout to be invalid, the remaining part of this agreement remain valid. In this case, the parties will strive to come to an agreement to their original intensions.

(5) Wherever he or his is indicated in the above sections, the same may be read as he/ she or his/ her, as the case may be.

_____

(For & On behalf of the Principal)

(Office Seal)

Place .....

Date .....

_____

(For & On behalf of Bidder/Contractor)

(Office Seal)

In case of Joint Venture:

1.

2.

3.

Witness 1:

(Name & Address)

_____

_____

_____

Witness 2:

(Name & Address)

_____

_____

_____

GUIDELINES FOR INDIAN AGENTS OF FOREIGN "SUPPLIERS/CONTRACT AGENCIES"

1.0 There shall be compulsory registration of Indian agents of foreign suppliers/contract Agencies with PPA in respect of all global (Open) Tenders and Limited Tenders. An Agent who is not registered with PPA shall apply for registration in the prescribed Application form.

1.1 Registered agent needs to submit before the placement of order by PPA an Original certificate issued by his foreign supplier/contract Agency (or an authenticated Photostat copy of the above certificate duly attested by a Notary Public) confirming the agency agreement and giving the status being enjoyed by the agent along with the details of the Commission/remuneration/salary/retainer being paid by them to the agents(s).

1.2 Wherever the Indian representative has communicated on behalf of their foreign supplier/contract agency and /or the foreign supplier/contract agency have stated that they are not paying any commission to their Indian agent (s) but paying salary or retainer, a written declaration to this effect given by the foreign supplier/contract agency should be submitted before finalizing the contract.

2.0 DISCLOSURE OF PARTICULARS OF AGENT (S)/ REPRESENTATIVE (S) IN INDIA, IF ANY

2.1 **Bidders of foreign nationality shall furnish the following details in their quotation/bid.**

2.1.1 The name and address of their agent(s)/representative (s) in Indian, if any, and the extent of authorization and authority given to them to commit them. In case the agent (s)/representative(s) is a foreign company, it shall be confirmed whether it is a really substantial Company and details of the Company shall be furnished.

2.1.2 The amount of commission/remuneration included in the quoted price(s) for such agent (s) representative (s) in India.

2.1.3 Confirmation of the Bidder that the commission/remuneration if any, payable to his agent (s)/representative (s) in India shall be the responsibility of the bidder for which the bidder may keep such provision included in the price bid and make the payment to the agent/representative directly in Indian currency only. The Port Authority shall in no case shoulder the responsibility for payment of such commission/remuneration to the agent/representative, if any, in India.

3.0 **DISCLOSURE BY INDIAN AGENT (S) OF PARTICULARS OF THEIR FOREIGN SUPPLIERS/CONTRACT AGENCY AND FURNISHING OF REQUISITE INFORMATION:**

3.1 **Bidders of Indian Nationality shall furnish the following details/certificates in/along with their offers.**

3.1.1 The name and address of foreign supplier/contract agency indicating the nationality as well as their status, i.e. manufacturer or agent or manufacture holding the Letter of Authority

3.1.2 Specific authorization letter by the foreign supplier/contract agency authorizing the agent to make an offer in Indian in response to tender either directly or through their agent (s) /representative (s).

3.1.3 The amount of commission/remuneration included for bidder in the price 9s) quoted.

3.1.4 Confirmation of the foreign supplier/contract agency that the commission/ remuneration, if any, reserved for the bidder may be paid to the bidder himself in Indian in equivalent Indian currency. The Port Authority shall in no case shoulder the responsibility for payment of such commission/remuneration, if any.

4.0 In either case, in the event of materialization of contract, the terms of payment will provide for payment of the commission/remuneration payable, if any, to the agent(s)/representative (s) in India Rupees, as per terms of the contract.

4.1 Failure to furnish correct information in detail, as called for in para 2.0 and / or 3.0 above will render the bid concerned liable for rejection or in the event of materialization of contract; the same is liable for termination by PPA. Besides this, other actions like banning business dealings with PPA, payment of a named sum etc., may also follow.

Digitally signed by ALEKHA CHARAN SAHOO
Date: 2026.09.26 12:47:48 IST
Location: eProcure-EPROC